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Advertising, publicity rights and English law

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***I.P.Q. 209** ABSTRACT

The celebrity image is perceived to be a commercial magnet by those who use it. The growing use of celebrity image in advertising--whether that be the celebrity's physical image, voice, name (including nickname), signature or even catchphrase--is evidence of that. The celebrity industry argues that the magnetism of the celebrity persona is a valuable intangible that "belongs" to the celebrity or those commercial partners who have "bought into" that celebrity, through contract so that only they may profit by the use of their celebrity persona in advertising or promotion generally. However, those who deny this argue that celebrity magnetism is public property (and part of popular culture) rather than a private right. In other words, that exploitation is fine, provided no specific harm is inflicted. This article seeks to explore the present state of English law on publicity rights and to predict future developments, in the light of the experience in America, Continental Europe and the Commonwealth.

The pursuit of a publicity right

The aim of this article is to explore the pressure for the legal protection of "publicity" or "image" rights.¹ Such pressure obviously centres on the use of a celebrity persona in marketing or promoting products and services. Such use is pervasive--whether it be ***I.P.Q. 210** Hollywood actors like George Clooney advertising designer sunglasses, football stars like David Beckham advertising mobile phones or pop groups such as Blue promoting a cola drink. The advertising industry sees the use of a celebrity link as a method of enhancing the commercial attractiveness of the product or service to which the celebrity "magic" has been attached, given "audience appeal is a principal stock-in-trade of a celebrity".² As celebrities are the "products" of the mass media "so they form a logical target for advertisers".³

The celebrity image--which may also involve lookalikes or soundalikes of the celebrity--may be used to convey endorsement or for eye-catching effect, including parodic use of the celebrity image. It may also be used for allegiance appeal, where rather than advertising another product the celebrity is the product itself (as is the case in souvenir or memorabilia merchandising).

Those who support a publicity right⁴ argue that the celebrity or those who are commercially linked to that celebrity should have legal control over all the above uses of the celebrity link. Their argument is that the magnetism of the celebrity persona is a valuable intangible that "belongs" to the celebrity or those commercial partners who have "bought into" that celebrity, through contract. It is claimed that these parties should have the protection of the law over unauthorised use of the celebrity magnet so that only they may profit by the use of their celebrity persona in advertising or promotion generally. Thus in *Irvine v Talksport Ltd*⁵ the famous racing driver Eddie Irvine essentially wanted a substantial fee for the (unauthorised) use of his image in the defendants' advertising. As a collateral concern, celebrities may claim a publicity right in order to retain control over their persona, its developments and associations.⁶ This was a key aim of the claimants in *Douglas v Hello! Ltd*⁷ where Michael Douglas and Catherine Zeta-Jones objected to unauthorised photographs of their wedding in the famous celebrity magazine, having already sold the "exclusive" right to wedding photographs to its main rival, *OK!* magazine.

Of course, celebrities and the industry behind them may obtain some protection from registered trade mark law.⁸ However, such protection will only ever be of limited scope. There are hurdles to registering a famous name or celebrity indicia--as *Elvis Presley *I.P.Q. 211 Enterprises* found to their cost.⁹ There is no *automatic* right to register your own name or image. This is because there may be problems showing that the celebrity name or image is sufficiently distinctive to act as a "badge of origin", rather than as a description of the goods themselves.¹⁰ And where the name is not devoid of distinctiveness it is most likely to act as a badge of origin where the registration is for goods or services associated with the celebrity. Moreover to constitute infringement of a registered mark the defendant must use identical or similar marks to those registered.¹¹ Nor is copyright protection particularly useful in this area: there is no copyright in the name or image of the celebrity. Copyright in photographs belongs to the photographer or his employer¹² while mere protection of copyright in the photographs or images that the celebrity already owns is clearly not satisfactory for the industry, given the attention of the world media and particularly of paparazzi in celebrities. And the relevant copyright or performance rights in the sound or video recordings of the celebrity may also not belong to the celebrity himself. Rather than relying on aspects of existing IP rights the celebrity industry wants rights in "the very identity or persona ... [of the celebrity]".¹³ The industry would obviously prefer a general protection against unauthorised use of the celebrity image, based on an allegation of misappropriation.¹⁴

But what of those who seek to exploit celebrity magnetism without authorisation (and, therefore, without payment)? They would argue that, in the absence of specific wrongs such as trade mark infringement or defamation, the use of the celebrity magnet is open to all. That, in effect, celebrity

magnetism is public property (and part of popular culture) rather than a private right. Rather than view fame as bestowing a new form of intellectual property right, those outside the celebrity industry could argue that the price of fame is public interest and commercial free-riding. In other words, that exploitation is fine, provided no specific harm is inflicted. And to raise the banner of "misappropriation" is to seek the moral high ground where none in fact exists.

Thus this article will assess the present protection of "celebrity" as a commercial magnet in English law and will go on to analyse possible future developments--for as Lane notes "we can be sure that the struggle to transform celebrity status into intellectual property will continue".¹⁵ This assessment will be done within the context **I.P.Q. 212* of advertising, where the use of celebrities continues to grow. In considering this issue, it is important to look at the experience of other jurisdictions--American, Commonwealth and European--where rights in publicity or image appear to be accepted.

Privacy and publicity distinguished

The principal interest analysed in this article is the commercial one in publicity or image. It is this interest which is central to the grievance alleged by celebrities (and their commercial partners) following an unauthorised exploitation of their magnetism. However the protection of privacy will also need to be raised within this discussion.

Privacy and publicity can be seen as the two sides of a right of "personality". This indeed appears to be the continental approach to image protection (reviewed below), while in American law the development of privacy and publicity rights are clearly linked. So the acceptance of privacy protection has acted as an important catalyst in the promotion of publicity rights in America¹⁶ with the leading American tort commentator of his day, Prosser, in his influential analysis of the nascent privacy right in America including "appropriation of the plaintiff's name or likeness" as one of his four torts of privacy.¹⁷ Thus both the continental and American experiences show that what are originally identified as privacy concerns can engender the separate development of publicity rights. Of course such a development involves the creation of property or quasi-property rights (the publicity right)--attracting assignability and inheritability possibilities--out of a purely personal right (the right of privacy).

However central to the thesis of this article is the need clearly to separate privacy protection from any publicity right. If this is not done the assessment of the legitimacy (or otherwise) of the publicity right becomes obscured.

Of course dignitary interests may be encompassed within a publicity right--part of the publicity right may indeed involve the ability to *control* commercialisation of the image rather than simply to *profit* by it. So though the most obvious harm that a publicity right protects against is the lost licensing fee, its use may also be to prevent loss of control over the image or its impact, through unauthorised commercial use. Or again, dignitary interests may be raised where the unauthorised use of the celebrity image is alleged to attract possible injurious association. Though

in such cases defamation¹⁸ or malicious falsehood may (rarely) arise, it is more likely that where injurious association is at the heart of the celebrity's concern he is objecting to an association with downmarket goods or the use of his image for parodic effect.

***I.P.Q. 213** But having acknowledged such "dignitary" interests that lie within the publicity right, they must be placed within the overall concern to protect the commercial magnetism of the celebrity. Rather than "personal" dignitary concerns they focus on "commercial" dignitary concerns. Rather than impacting on the private space of the celebrity they impact on celebrity as brand. In the majority of cases where "dignitary" issues seem central it is still the commercial interests of the celebrity which are in fact being raised. In such cases the harm to the commercial value of the celebrity image may be alleged to arise from harm to the "dignity" of the celebrity. At the heart of such objections based on controlling dignitary interests are essentially commercial concerns: the celebrity seeks to control the use of his persona in order to maintain full impact in its further and future commercial use. When such objections are made it is the investment in the celebrity image that is being defended, not privacy. In essence, it is the same concern as leading brand owners raise when they allege an infringement of their registered trade mark under s.10(3) of the Trade Marks Act (TMA) 1994, namely the use of the sign/celebrity "takes unfair advantage of, or is detrimental to, the distinctive character or the repute" of the sign/celebrity.

Once this is realised, it becomes clear that seeking to control personal information or personal space¹⁹ is different to seeking to maintain exclusive profitability, or to prevent unfair competition. Prosser, though terming appropriation of personality a privacy tort, acknowledged it to be radically different from the other privacy torts he reviewed. He stated: "it seems sufficiently evident that appropriation is quite a different matter from intrusion, disclosure of private facts or a false light in the public eye. The interest protected is not so much a mental as a proprietary one, in the exclusive use of the plaintiff's name and likeness as an aspect of his identity."²⁰ Indeed, such cases where appropriation was the main concern created, according to Prosser, "a common law trade name, his own and a common law trade mark in his likeness".²¹ Thus Bedingfield asserts that the true ancestor of the publicity right "is not the right to be left alone, but rather the law of copyright and trade marks".²² So the publicity right has been accepted in some American states which have rejected the right of privacy,²³ while the Supreme Court in *Zacchini v Scripps-Howard Broadcasting Co*²⁴ pointed out the difference between the two torts, noting that the publicity right "has little to do with protecting feelings *I.P.Q. 214 and reputation".²⁵ Those rare examples where celebrities object to *any* commercialisation of their persona²⁶ --where in effect they seek a "non-exploitation" right--are better seen as privacy matters.

Privacy concerns and publicity grievances involve different interests being protected²⁷ and different types of harm.²⁸ Despite the view of Storey who suggests that in personality appropriation cases "the basic question is one of privacy",²⁹ cases generally divide neatly into those where privacy (distressing invasion of the private space) is the main issue³⁰ and those

where commercial publicity interests (the financial consequences of unauthorised exploitation) are uppermost in the complaint.³¹ So in the *Hello!* case, the claimants, Catherine Zeta-Jones and Michael Douglas, had chosen to commercialise their image in their wedding and reception--the litigation was predominantly about maintaining the control over that commercial image. It appears that they realised how difficult it would be to keep the wedding and reception truly private, so they decided on commodification as a way of retaining control.³² However, commodification it was. The issue was not privacy *per se*, but as the High Court judge noted the "valuable asset" of their celebrity. Indeed, though the emphasis of Sedley L.J.'s judgment in the earlier³³ Court of Appeal hearing was on the protection of the "privacy" of the couple, he underlined the fact that "this intrusion was by uncontrolled photography for profit of a wedding which was to be the subject of controlled photography for profit". Further, he acknowledged that the control over the photographs was "as much a commercial as a personal reservation" ***I.P.Q. 215** and that the celebrities had "sold most of the privacy they were seeking to protect".³⁴ This should be compared with the earlier incidents of obtrusive photography endured by Catherine Zeta-Jones, outlined by Lindsay J. at the full trial of the action. This included being photographed on her way back from the delivery room after the birth of her son by journalists who had tricked their way into the hospital. Here privacy was clearly invaded.³⁵

Overall, therefore, it is submitted that to develop a rational response to the call for publicity rights--to identify in other words the rationale for such a right and the public interest issues that surround it--it is necessary to distinguish primarily commercial disputes from primarily privacy disputes.³⁶ Though both may involve control over likeness, Cornish notes that a right to personal privacy is "the obverse of a right to annexe all value flowing from publicity".³⁷ In particular it is critical that in their push to create a publicity right, the celebrity industry does not hijack any development of a privacy right.³⁸ As was noted above, the judicial history of the *Hello!* case shows there is a danger of blurring privacy issues with publicity and commercial issues. This article, therefore, distinguishes between the right "to be let alone"³⁹ and the right to control the commercialisation of persona and focuses on the quest for recognition of a saleable commodity in a pre-existing reputation,⁴⁰ particularly within the context of advertising.

***I.P.Q. 216** THE CELEBRITY PHENOMENON

"Celebrities ... are widely used--far more than are institutionally anchored elites--to symbolise individual aspirations, group identities and cultural values."⁴¹ Their association with or endorsement of a product brings "an instant fix, as opposed to building a reputation in a trade mark organically".⁴²

The celebrity image--perceived to be a commercial magnet by those who use it⁴³ --includes the celebrity's physical image, voice, name (including nickname), signature or even catchphrase. It also includes the in-character persona of, say, Paul Hogan as Crocodile Dundee.⁴⁴ All such facets

of the celebrity persona "which are recognisable to the public as representing that persona"⁴⁵ have promotional potential. Once fame has been achieved⁴⁶ by a celebrity then there are various ways in which he or third parties (whether licensed by the celebrity or not) may seek to harness the commercial impact of that fame.

As will be seen later, it is important to identify the different categories of celebrity use when determining the correct response of the law. Laddie J. in *Irvine v Talksport* distinguished between merchandising and endorsement, the former as such not being covered by the common law tort of passing off. On closer analysis, however, what is revealed is that there is a more complex framework to image use than simply a merchandising/endorsement divide. Thus the following are the different methods of attaching celebrity magnetism to products or services:

- The "allegiance use" of celebrity⁴⁷: the "icon" effect of celebrity. This involves celebrity souvenirs or memorabilia such as T-shirts or posters. Rather than buying because of the celebrity, the celebrity is the product--his image on the T-shirt (or whatever) is the point of the product and its reason for purchase. This is what Laddie J. terms merchandising--so in the *Elvis Presley* case⁴⁸ Elvis was the product.

- The "informational advertising use" of celebrity: the "endorsement" effect of celebrity. Here the celebrity is seen as an arbiter of the quality of the product with which he is being associated. Where such endorsement is involved the celebrity link has an information quality, with the celebrity seen as some sort of guarantee of the product or service with which he is being associated.

***I.P.Q. 217** • The "enhancement advertising use" of celebrity: the "eye-catching" effect of celebrity. The theory behind such use is that the product to which the celebrity persona is in some way associated is made more glamorous or eye-catching as a result. Sudjic has noted the "alchemical power [of fame] to turn the least promising of raw materials into alluring and desirable artefacts".⁴⁹ Like informational advertising, the consumer is buying because of the celebrity but here endorsement is not the purpose behind the use of the celebrity image, nor does endorsement stimulate the consumer response. Rather, the consumer's attention is caught by the use of the celebrity. An extreme example of this use is the advertisement which parodies the celebrity.

- The "biographical information use" of celebrity: attention-grabbing by media features about the celebrity himself. It was certainly the case that at the height of media interest in Princess Diana newspapers could enhance sales by featuring a photograph of the Princess on the front page with a feature that rehashed old news or tittle-tattle--the use of the celebrity being to add glamour and make the newspaper eye-catching. This lies somewhere between all three of the above uses as such features are both selling the celebrity and selling themselves at the same time. Clearly many such features--which rely on the use of photographs--are the very life blood of celebrity. Provided there is no defamatory or confidential information included such would appear to be accepted as common property by the celebrity industry

PRESSURE FOR CHANGE

Despite the traditional reluctance of the English courts to create a publicity right or anything like it, there is every reason to suspect (and fear) a change in this approach.

We live in an age of celebrity culture--a phenomenon that goes beyond the entertainment sphere to include media and sporting personalities.⁵⁰ The expansion of this celebrity culture is fuelled by the needs of the modern media industry (with its need to fill ever-increasing channels and magazines) and the advertising industry. Their need to employ the magnetism of celebrity--given modern buying habits are "highly responsive to image related advertising"⁵¹ --has led to the existence of the celebrity industry, an industry processed by agents and media/entertainment lawyers. The resultant explosive growth in earnings for celebrities--based on their celebrity status rather than their career skills--is apparent to all.

Following in the wake of this explosion of the phenomenon of celebrity is the commercial practice based on the assumption (or threat) that publicity rights exist. **I.P.Q. 218* Agents and lawyers are keen to expand the profitability of their clients into all possible areas by preventing unauthorised use. As Jaffey notes, "commercial practice seems to presuppose merchandising rights",⁵² while Lane contends that the practice of licensing use of the celebrity persona is part of a process to educate the public that celebrities have publicity rights.⁵³ By claiming valuable assets that they will seek to protect against misappropriation, the industry prepares the ground for actual rights.⁵⁴

This perception is enhanced by the experience outside England of those concerned with exploiting celebrity culture. International experience is likely to impact on the English reaction to the celebrity industry's concerns, given advertising is the subject of international distribution and is indeed borderless on the internet.⁵⁵ As Hatton notes, "the evolution of multi-media where advertising and promotion extend beyond national frontiers has rendered the use of internationally renowned personalities increasingly popular".⁵⁶ Thus those in the entertainment field assume that the wide protection afforded to the commercial use of personality in the United States will also be found here, while the European tradition of personality protection is part of the baggage brought to this country by "imported" European football stars. This has led one sports journalist to assert that "the international law of image rights is effectively being harmonised in the dressing room".⁵⁷ Indeed, the image rights of professional footballers have received widespread public attention, particularly in the case of David Beckham. The interest of Real Madrid in signing this player was widely reported to be as much about his brand worth as his footballing skills.⁵⁸ Of course, it is in the interests of the football clubs to acknowledge the image rights of their players: such rights are important assets for the club, so it makes sense to accept their existence through contract.⁵⁹

It is against this background that recent developments in English law have to be assessed. These developments--particularly in the tort of passing off but also in the action for breach of confidence--will encourage continued pressure for the protection of "publicity rights" in English law. To asses

the likelihood of success in this endeavour **I.P.Q. 219* it is first vital to survey the American, Commonwealth and European approaches to publicity rights.

THE QUEST FOR PUBLICITY RIGHTS: AN INTERNATIONAL SURVEY

The legal debate over misappropriation of image dates from the late nineteenth and early twentieth centuries. This was an era which saw a growth of celebrity promotion in advertising and the media. Such growth was due to the increasing impact of advertising and, as the twentieth century progressed, the ever-widening dissemination of celebrities through film, magazines, radio and television.⁶⁰ So at approximately the same time--around the start of the twentieth century--American, English and German courts were presented with litigation objecting to the unauthorised use of a celebrity name or more commonly a celebrity picture in advertising and promotion.⁶¹

Of course in all the jurisdictions about to be reviewed celebrities are able to seek registration of their indicia as trade marks (and indeed there have been a number of high profile applications to register such as Community Trade Marks⁶²). However registered trade mark law has limits, as has already been noted above. A wider, *automatic* right is the goal of the celebrity industry.⁶³ What is interesting to note is the movement in the jurisdictions about to be surveyed from an initial acceptance of a personal right based on "privacy" or "personality" to a property-based "publicity" right, entailing the commercially useful attributes of assignability and inheritability.⁶⁴

**I.P.Q. 220* The American approach

The American approach to the legal protection of image was shaped by commentators throughout its development and by the fact that a privacy action gained judicial approval at the start of the explosion of advertising and the birth of the Hollywood film industry.

The road to the publicity right started in the United States with an article written in 1890 by Warren and Brandeis,⁶⁵ advocating a privacy right in the wake of intrusive press coverage of Warren's private life. Such a right was claimed as a non-proprietary "inviolate personality" right. In 1902 this article was relied upon in New York by the plaintiff in *Roberson v Rochester Folding Box Co.*⁶⁶ The plaintiff, not a public character, sought redress for the mental distress caused by the defendants' unauthorised use of her picture in their advertisements. When the Court of Appeals of New York (by a 4:3 decision) rejected the right to privacy there was a public outrage--a particular concern being that the plaintiff was a minor.⁶⁷ In effect this led to what had been a purely academic debate gaining public notice and the unusual step of an article being written by one of the concurring judges, in defence of his decision.⁶⁸ In 1903 the New York legislature reacted by creating new civil and criminal liability for the unauthorised use of picture or name of a living person without consent for advertising or commercial use. It was the dissenting judgment of Gray J. in *Roberson*, together with the Warren and Brandeis article which swayed the Georgia Supreme Court in *Pavesich v New England Life Insurance Co.*⁶⁹ They held that the privacy of the plaintiff artist had been invaded

when the defendant insurance company without authority used his name, picture and spurious testimonial in their advertising.⁷⁰

This new tort--which appeared in the 1939 Restatement of Torts⁷¹ --was seen as a personality right, the control of privacy being analogous to the natural right to control one's own body. Perhaps inevitably as the privacy tort had developed within the context of the unauthorised use of name or likeness in advertising, celebrities claimed its protection.⁷² However, though celebrities were at times successful, some courts were unwilling to protect the commercial harm alleged, given that the privacy right focused on mental distress rather than economic loss. Madow notes that "when celebrity *I.P.Q. 221 plaintiffs first came to the courts in the 1920s and 1930s seeking relief from unauthorised commercial appropriation on privacy grounds the reception was generally cool or uncomprehending".⁷³ Indeed some judges took the view that public figures waived their right to privacy or deserved what they got. In the 1941 decision, *O'Brien v Pabst Sales Co*,⁷⁴ the court noted that the publicity he got "was only that which he had been constantly seeking and receiving".

What proved important for celebrities was the growing acceptance of a separate right--the right of publicity.⁷⁵ This had been acknowledged for the first time in 1953, in *Haelan Laboratories v Topps Chewing Gum*.⁷⁶ Here the plaintiffs were chewing gum manufacturers who had contracted with baseball players for the exclusive right to use their names and likenesses in connection with their gum. They successfully prevented the defendants from using these same sportsmen in their advertising.⁷⁷ Starting from the premise that the image of a celebrity was of value in a world of mass marketing Judge Frank felt emboldened to create a separate right to cover this phenomenon. He felt the court should protect interests which have acquired a pecuniary value, it being common knowledge "that many prominent persons ... far from having their feelings bruised through public exposure of their likenesses would feel sorely deprived if they no longer received money for authorising advertisements, popularising their countenances".⁷⁸ So he accepted that "in addition to, and independent of that right of privacy ... a man has a right in the publicity value of his photograph".⁷⁹ Thus the defendants were liable, having invaded the exclusive right to use the photographs of the leading baseball players which had been granted to the plaintiffs. This "wonderful exercise of common law jurisprudence ... swept aside limitations which had attached to the almost as recently devised right of privacy".⁸⁰ Indeed Madow comments that the right of publicity was created "not so much from the right of privacy as from frustration with it".⁸¹

This decision was "fortified"⁸² subsequently by influential commentators. First, in 1954 Nimmer, a leading copyright scholar (and also it should be noted legal counsel for Paramount Pictures at this time) in his seminal article "The Right of Publicity" urged *I.P.Q. 222 acceptance of this new property right, to meet the "needs of Broadway and Hollywood".⁸³ He defined the publicity right as "the right of each person to control and profit from the publicity value which he has created or purchased".⁸⁴ As Bedingfield notes, by giving a name to the cause of action he "spurred" the later development by the courts of the contours of the right.⁸⁵ Within six years, Prosser,⁸⁶ the

leading American tort scholar, approved of *Haalen*, though he attempted to bring it within the tort of privacy, defining it as the appropriation of the plaintiff's name or likeness.⁸⁷ In so doing he did acknowledge there was "little indication that Warren and Brandeis intended to direct their article at the 4th branch of the tort"⁸⁸ but he had been directed towards this by the *Roberson* case.⁸⁹ By the 1970s, after some judicial scepticism, the divide between the privacy and publicity rights was becoming clearer and in 1977 there was official recognition of the publicity right by the Supreme Court in *Zacchini v Scripps-Howard Broadcasting Co.*⁹⁰ The most recent development of the publicity action has been by McCarthy,⁹¹ the influential trade mark commentator. He defined the right as "the inherent right of every human being to control the commercial use of his or her identity". By 1993 the American Law Institute had placed the right within the unfair competition laws by including it in the Restatement (Third) of Unfair Competition. At present it is a recognised right in 27 states either by statute⁹² or at common law (or both, as in the case of California). It is accepted to be assignable and increasingly accepted to be descendible,⁹³ though it is still not universally accepted as a property right.⁹⁴ Most **I.P.Q. 223* states have defences based on the communication of facts, news reporting and the First Amendment, though how free speech will be applied is at times difficult to predict.⁹⁵

What is evident in the more recent case law is that the courts can be persuaded to expand the action to protect beyond the use of actual image or name *per se* in advertising.⁹⁶ So in *Carson v Here's Johnny Portable Toilets Inc*⁹⁷ it was used to protect the plaintiff's famous catchphrase ("Here's Johnny") that had been (rather wittily) appropriated by the defendants as the brand name for their portable toilets. In *Estate of Presley v Russen*⁹⁸ the right was applied to prohibit impersonators of the late Elvis Presley, while in *Price v Worldvision Enterprises Inc*⁹⁹ the plaintiffs, heirs of the actors who had created the comedy characters, Laurel and Hardy, were able to prevent a television series portraying the comedy duo. A celebrity lookalike in advertising was held actionable in *Onassis v Christian Dior*,¹⁰⁰ as was a soundalike in *Midler v Ford Motor Co*,¹⁰¹ it being held that "to impersonate a voice is to pirate an identity". One of the most extreme versions of the publicity right is to be found in *White v Samsung Electronic America Inc*¹⁰² where evoking an image was actionable. Here an advertising campaign involved a robot, dressed and presented so as to evoke the plaintiff, a popular gameshow hostess.¹⁰³ Though not all states go this far, Anderson has noted that generally "the courts enforce this body of law vigorously, consistently and expansively. A **I.P.Q. 224* person's right to control the commercial use of his or her personality is quite complete."¹⁰⁴ As will be seen later, this has led to a backlash by some American commentators, fearful of the consequences of such a wide protection of celebrity. So Sen criticises the "increasing privatisation of the celebrity, resulting from the expansion of the right of publicity" as this "stifles cultural debate, deliberation and exchange". Ironically as the publicity right has taken hold and developed the privacy right has been subjected to severe limitations, due to free speech and access to information concerns.¹⁰⁵

The civil law approach

The natural response of judges in civil law countries where a party complains of the unauthorised use of his image derives from the perceived need to protect the "personality" rights of the individual. Personal autonomy will be protected as a right innate to a human being. This clearly requires the legal protection of privacy--indeed privacy protection can be found from the mid-nineteenth century onwards in most European states. In France, for example, the courts recognised the right of privacy in 1858, in the "Rachel affair", involving a photograph of a famous actress on her deathbed.¹⁰⁶ It also tends towards the legal protection of a person's portrait and name against unauthorised use. Often such protection is derived from broad provisions in the civil code together with specific statutory provisions, related to copyright law (covering the use of portraits without permission) and trade mark law (covering the use of names for commercial purposes).¹⁰⁷ Overall the courts will try to mesh together such sources of protection to provide a coherent protection for personality. Thus Caenegem notes that image rights in German law are a mix of tort, copyright, human rights and restitution, depending on the characteristics of the claim.¹⁰⁸ What is also apparent is that though the protection of image in civil jurisdictions has originally been located alongside privacy protection as a personal right, the pressure for the greater *commercial* protection of the **I.P.Q. 225* image has led to a shift in France, Germany and Italy (and Central and South American states¹⁰⁹) towards accepting a property right in image, akin to a publicity right.

So in France case law has transformed the early privacy protection into something close to a publicity right. In the *Papillon* case¹¹⁰ it was held that the unauthorised use of a photograph on the cover of the biography of the famous convict known as Papillon, though not raising privacy issues, infringed his right to image. Subsequently, the use of lookalikes of celebrities was held to infringe the real celebrities' image rights in *Belmondo, Halliday and Vartan v Eminence*¹¹¹ and the use of an unauthorised soundalike led to liability in *Pieplu v Regie Francaise de Publicite*.¹¹² French law also appears to be moving towards descendibility of publicity rights. In *Madame Brun v SA Expobat*¹¹³ (where the defendants used a caricature of a deceased actor in advertising) the court accepted that the image right included personal and property characteristics and that the commercial exploitation of image can pass to the heirs.¹¹⁴ By the 1990s leading French commentators argued that such decisions, imposing as they do sanctions on the unauthorised use of image, had thereby established a right "independent from all other attacks on one's private life"¹¹⁵ and that the result was an acceptance of "a new concept of 'brand image' or reputation right attached to a person".¹¹⁶ Of course, there are exceptions to these new image rights, in favour of free speech and news information¹¹⁷ and parody (on a par with the French parody defence in copyright¹¹⁸).

In Italy, though again there is no express publicity right, provisions protecting privacy, name and portrait¹¹⁹ have been extended by the judges. So the portrait right was extended in *Dalla v Autovox*¹²⁰ where liability attached to the wrongful association of a celebrity with the defendant's

product. Though the portrait of the famous Italian singer Dalla was not used in the defendant's advertisement, recognisable key features of his persona were, in particular a woollen hat and small round glasses. The advertisement was held to be unlawful by analogy with the Civil Code's protection of **I.P.Q. 226* image. Subsequent case law has deemed lookalikes in advertising to be similarly unlawful.¹²¹ For Martuccelli¹²² this creativity has produced "a right similar to the American right of publicity".

German law also has no publicity right as such, though as with the Italian experience noted above, specific statutory provisions protecting against the non-consensual use of portraits and names have provided a sympathetic judiciary with a launching pad for extended image protection.¹²³ The significant development in German law as far as publicity rights are concerned was the recognition in 1954¹²⁴ by the Federal Supreme Court of a general right of personality, based on Arts 1 and 2 of the German Constitution of 1949.¹²⁵ These articles constitutionally guarantee both privacy protection and the right of self-determination. Subsequent case law revealed that the courts were willing to use this constitutional protection to build on the statutory rights in names and images and to allow these provisions to extend to the commercial development of personality. As Brommekamp notes: "the unauthorised exploitation of somebody else's personality for commercial reasons violates that person's right of self-determination since the intruder exploits the personality and makes it available to his own aims and purposes, an act which is inconsistent with the inviolability of human dignity".¹²⁶ That this applied as much to celebrities as to ordinary citizens was accepted in the *Paul Dahlke* case where an actor's picture was used in an advertisement without his consent and the defendants were ordered to pay the actor damages equivalent to a licence fee.¹²⁷ In *Heinz Erhardt* the son of the deceased famous German actor successfully objected to a soundalike of his father being used in the defendants' radio advert. The decision established that the right over one's picture could by analogy and by reliance on the general right of personality be extended to the voice or get up. The court ordered the advertisement to be restrained,¹²⁸ although the emphasis was on the provision of postmortem protection for the *dignity* of the individual. However, more recently, the Bundesgerichtshof (BGH) accepted that personality rights--in the commercial and not merely "moral" sense--are inheritable.¹²⁹ So damages were awarded to the daughter of **I.P.Q. 227* Marlene Dietrich for the unauthorised use of her mother's image (photographs and a lookalike) in the defendants' advertising and merchandising.¹³⁰

Clearly, where image protection is concerned, the German courts have moved away from simply protecting against moral harm to the protection also of economic interests. As Vahrenwald notes, "the concept of the right in the own portrait has been influenced by the economic, technological and social changes of society",¹³¹ while Bergmann comments that "step by step the right to one's image has moved away from the law of defamation ... and is turning into a commercially exploitable right".¹³²

The Commonwealth approach

In the common law world passing off is the most obvious tort to employ where image rights are sought. In both Canada and Australia this tort was explored by celebrities, objecting to the unauthorised exploitation of their persona in promotional ventures. However, the response of the courts in these two countries was radically different.

Canada

In Canada, though four provinces now have privacy statutes,¹³³ the main method of protecting against the unauthorised use of image in advertising is the tort of misappropriation of personality, developed in Ontario.¹³⁴ By this tort, the courts have developed a right of publicity, similar to that existing in many American states.¹³⁵

The development of this new tort appears to have happened because the two cases which gave rise to it clearly did not involve endorsement by the celebrity plaintiff involved. This meant that the tort of passing off was inapplicable.¹³⁶ In the case that *de facto* created the tort of appropriation of personality, *Krouse v Chrysler Canada Ltd*,¹³⁷ the plaintiff football player objected to the use of his image in the defendant's advertising. He was denied passing off protection because the offending promotional material was simply an action picture of a football game, with the player identifiable by the number on his back. No implied endorsement was found, though the court noted it might have ***I.P.Q. 228** been different had the photograph involved a close proximity between the plaintiff and one of the defendant's products. Therefore, on appeal to the Ontario Court of Appeal the plaintiff did not rely on the tort of passing off but rather submitted that there was a tort (akin to trespass or conversion) that protected his commercial magnetism, given that "as a professional athlete he has earning power not only in his role as a football player, but also in his ability to attach his endorsement to commercial products or undertakings or to participate otherwise in commercial advertising".¹³⁸ It was this potential that had been injured. Though on the facts the plaintiff failed,¹³⁹ his proposition was accepted. According to Estay J.A. (drawing support from the decision in *Tolley v Fry*¹⁴⁰) there was tort liability where the appropriation of personality amounted to "an invasion of his right to exploit his personality by the use of his image, voice or otherwise to damage the plaintiff". He had the "right to realize ... a commercial advantage from the notoriety which professional athletes in our community and in these times possess".¹⁴¹ So the tort of passing off was not extended, the court remaining true to the need for a real misrepresentation of endorsement. Rather the phenomenon of celebrity seemed to require the development of a separate tort of misappropriation.

This tort was subsequently applied, again in Ontario, in *Athans v Canadian Adventure Camps Ltd*.¹⁴² Here the plaintiff was a famous professional water skier. The distinctive photograph he used of himself water skiing¹⁴³ was reworked as a line drawing by the defendants in their advertising

brochure for water sports holidays. Again, liability under the tort of passing off was rejected as it was unlikely he would be identified by the drawing so no connection misrepresentation would arise--the court found that had the defendants wanted to imply his endorsement they would have highlighted his identity.¹⁴⁴ Rather he won the case on the basis that his exclusive proprietary right to market his personality for gain had been invaded, *i.e.* the wrong first noted in *Krouse*.¹⁴⁵ Henry J. accepted that this "emerging tort" appeared to lie behind the *Tolley v Fry* approach to defamation but asserted that it now was a "more broadly based common law tort". Misappropriation is clearly the key to this tort--liability arises from taking commercial advantage of the plaintiff's magnetism without paying for it.¹⁴⁶

***I.P.Q. 229** For Collins, "Canada has employed the tort of 'misappropriation of personality' as the primary method of protecting the publicity rights of celebrities".¹⁴⁷ However this is still a tort in the process of evolving--in particular there is debate as to whether it only applies to advertising and the promotion of goods or services through endorsement. So commentators have drawn a distinction between the use of a personality to promote a product and presentation of the personality as the subject of the product itself (as in a biography)--the so-called sales vs subject debate. In the non-marketing case of *Gould Estate v Stoddart Publishing*¹⁴⁸ the Ontario Court of Appeal refused to see the unauthorised use in a biography of the photographs taken many years before of a deceased famous concert pianist as involving the tort. Rather the claim was seen as a copyright one. A further area of uncertainty is whether the tort might also apply to privacy claims.¹⁴⁹ The tort is further complicated by the uncertainty surrounding a defence of public interest and indeed by the apparent widening of the scope of the tort of passing off in more recent cases such as *NHL v Pepsi-Cola Canada*.¹⁵⁰ Here passing off was made out where the unauthorised use in some way indicated the product was approved, authorised or endorsed by the celebrity, a much wider view of the tort than that accepted in *Krouse* or *Athans*. Such a development calls into question the very purpose of the tort of appropriation of personality.¹⁵¹

Australia

Unlike Canada, it was likely that Australia would not accept a misappropriation tort. A policy rejecting any right in valuable intangibles *per se* was evident as far back as 1937. In *Victoria Park Racing v Taylor*¹⁵² the defendants had clearly reaped some benefit from the plaintiff's successful business. Here the plaintiff had a successful racecourse, surrounded by a fence, admission to which was by payment. The defendants, who owned a neighbouring property, erected a wooden platform from which the plaintiff's race meetings could be viewed, as could boards displaying the starting prices. He contracted with a local radio station for them to use this platform for the purpose of live radio broadcasts of the plaintiff's race meetings. These broadcasts led to a serious loss of business by the plaintiff. Though pleaded as a nuisance/copyright claim, Gray notes "the central issue--so central that it lay largely unspoken--was whether the defendants had taken anything that might be regarded as the plaintiff's property".¹⁵³ The majority accepted this was an "impudent" use of his land by the defendant,¹⁵⁴ but ***I.P.Q. 230** rejected the dissenting view of Rich and

Evatt J.J. that such unfair commercial competition involving the "wrongful diversion of a legitimate source of profit" was misappropriation and therefore unlawful. Dixon J. noted¹⁵⁵ that a wide generalisation of liability was not the common law way, commenting, "courts of equity have not in British jurisdictions thrown the protection of an injunction around all the intangible elements of value, that is value in exchange, which may flow from the exercise by an individual of his powers or resources whether in the organisation of a business or undertaking of the use of ingenuity, knowledge, skill or labour".

This view was approved by the High Court of Australia in *Moorgate Tobacco Ltd v Phillip Morris (No.2)*,¹⁵⁶ and more recently in *Campomar Sociedad, Limitada v Nike International*¹⁵⁷ where the High Court of Australia asserted that it should be regarded "as an authoritative statement of contemporary Australian law".¹⁵⁸ It is hardly surprising, therefore, that as yet there is no right of publicity or tort of personality appropriation in Australian law.

Inevitably, therefore, plaintiffs have looked to the tort of passing off to protect their publicity value.¹⁵⁹ This quest received an early stimulus from the decision in *Henderson v Radio Corp Pty.*¹⁶⁰ Here the plaintiffs were well-known ballroom dancers and instructors. Their photograph was used without authorisation on the defendants' record covers. This was held by the Supreme Court of New South Wales to be a misrepresentation of endorsement,¹⁶¹ particularly given the product was aimed at ballroom dancing teachers.

Though this might at first sight appear to be a standard passing off case, the underlying policy of the court is clearly to extend the scope of the tort to prevent the perceived misappropriation taking place. Indeed, it is interesting to note that one of the dissenting judges who favoured protection against misappropriation in *Victoria Park Racing*, Evatt J., is Chief Justice in the court in *Henderson*. So the judgment downplays the need for the plaintiff to show "goodwill" (the property right in customer connection which lies at the heart of the tort of passing off) and likely harm. ***I.P.Q. 231** What appears central to the policy of the court is that a connection misrepresentation that draws on the plaintiff's fame should be actionable. Rather than goodwill, it was the plaintiffs' reputation and the promotional "worth" of that reputation that was the valuable intangible which they should be free to use as they wished. And as the plaintiffs were not already merchandising their image the court did not find the harm to be the lost potential to endorse or license but rather an "appropriation of reputation". As Manning J. noted, the tort should develop to take into account new methods of advertising and marketing, acknowledging that the "unauthorised use by the defendant of the commercially valuable reputation of the plaintiffs justified the intervention of the courts".¹⁶²

The policy behind *Henderson* is to create a version of passing off that provides celebrities with protection against any unauthorised connection between them and the defendants' products or services, on the basis that that automatically entails the harm of misappropriation, the injury to his reputation being "no less" than the appropriation of his goods or money.¹⁶³ The real policy

is to take the tort of passing off as far to becoming a tort of misappropriation as it possibly can. Indeed, Wadlow refers to the Henderson decision as "ambiguous", it not being clear whether the unauthorised use of the plaintiffs' photograph was unlawful *per se* or only because there was a misrepresentation of sponsorship.¹⁶⁴ It is not surprising, therefore, that he asserts that *Henderson* is better understood in terms of a right of publicity rather than as passing off.¹⁶⁵

This ambiguity is the reason, it is submitted, for the wide application of the tort of passing off in *Hogan v Koala Dundee Pty Ltd.*¹⁶⁶ In this case the defendant was certainly "cashing in" on the successful character Crocodile Dundee, created by the Australian comedian Paul Hogan and this appears to have led Pincus J. - who found support in *Henderson*--to sideline the need to show misrepresentation in the tort. Rather than focus on any misrepresentation, misappropriation is the heart of liability--the defendant was attempting to promote his business by "associating" it with the character and ambiance of the film. This was a "wrongful association of goods with an image properly belonging to the applicant". Indeed, the same judge noted in *Shoshana Pty v 10th Cantanae Pty Ltd*¹⁶⁷ that the celebrities' real complaint in these passing off cases was not about any misrepresentation but rather about lost fees. Subsequently, in *Hogan v Pacific Dunlop Ltd*¹⁶⁸ the Federal Court of Australia did re-emphasise the need for a misrepresentation where passing off was pleaded. However they then applied the notion of confusion in a sense particular to image rights. The case involved an ***I.P.Q. 232** advertisement for the defendant's product, parodying (without consent) a scene from the Crocodile Dundee film. The misrepresentation here was not as to "endorsement" in a real sense but as to fees being paid for the use of the image in the parody. In other words the public would assume that Hogan had been paid for use of his character's image and as this was not so, there was a misrepresentation. This is despite the fact that such a misrepresentation would not appear to be material, *i.e.* it would not make any difference to consumer choice. Even, therefore, when this case appears to be placing the tort back on the straight and narrow of orthodox passing off theory, it is in fact perpetuating the special application of the tort in the case of unauthorised use of celebrity image. In effect a false impression of sanctioned use is sufficient *in itself* to create liability.

However this extended version of the tort of passing off does not go as far as the American publicity right.¹⁶⁹ Simply using the celebrity image or name to gain consumer attention without some indication of willing association is not passing off. So in *Newton-John v School-Plough*¹⁷⁰ the use of a lookalike for the popular singer Olivia Newton-John was in the context of a disclaimer--the consumer was told that it was not her. No liability attached to this as no misrepresentation of endorsement or indeed of any commercial agreement would result for this advertisement.

In Australia, therefore, it is clear that the tort of passing off has been reworked to protect the commercial magnetism of celebrities where some commercial link is implied. Of course in Australia, parallel to the tort of passing off, there is the statutory action for deceptive trading, contained in s.52 of the Trade Practices Act 1974.¹⁷¹ Using an image or persona without permission may well amount to just such misleading or deceptive commercial behaviour.¹⁷² It

would appear fairly easy, therefore, to persuade a court in Australia that unauthorised use of a celebrity's persona is both passing off and breach of s.52, as was indeed the case in *Koala Dundee*.¹⁷³

The English approach

The above review of the American, Continental and Commonwealth development of publicity or image rights should be contrasted with the traditional English approach in this area.

Unlike the continental European tradition, English law offers no particular protection to names or images. Merely using another's name is not a wrong in itself--there being no **I.P.Q. 233* right in the use of a name.¹⁷⁴ Rather an identifiable harm must be shown to result. So in *Dockrell v Dougall*¹⁷⁵ the plaintiff doctor whose name had been used without permission to promote the defendant's medicine was unable to prevent such use as no defamation was involved, nor did the court find any professional injury likely. And as for unauthorised images, in *Corelli v Wall*¹⁷⁶ the plaintiff, a famous novelist, was unable to prevent the defendants publishing coloured postcards showing imaginary incidents in her life. Swinfen Eady J. rejected the claim based on the publication of the portrait without consent on the basis that the plaintiff had cited no authority to support such a claim.

Again, unlike the American experience, English academic support for a privacy right¹⁷⁷ was unlikely to shape judicial opinion. Traditionally commentators have exerted little influence on the judicial development of English law¹⁷⁸: until fairly recently there was a convention against the citation of living authors in court and even as late as 1987 Atiyah and Summers asserted "English academic writings are rarely cited to the courts and carry little weight when they are cited".¹⁷⁹

Moreover unlike both the continental and American experience, the common law, at least as applied in England, has always been mistrustful of generalised rights. Even in 1991, in *Kaye v Robertson*¹⁸⁰ the Court of Appeal refused to create a tort of privacy despite the distasteful invasion by Sunday Sport journalists of the celebrity plaintiff's "private space"--while in intensive care following an accident.¹⁸¹ Even more recently, in *Wainwright v Home Office* Mummery and Buxton L.JJ. foresaw difficulties in the judicial **I.P.Q. 234* development of a tort of privacy, given its "blockbuster" quality,¹⁸² Lord Hoffmann on appeal noting that none of the judges in *Kaye v Robertson* felt there to be a judicial power to declare the existence of a "higher level" right to privacy.¹⁸³ And indeed, this mistrust of generalised rights also ruled out the birth of a misappropriation tort, unlike the development of the common law in Canada. Cornish notes that this ties in with an instinct "in favour of the free use of ideas, whether in the commercial context or otherwise". Copyright and the law of passing off should be seen therefore as exceptions to this approach "in order to achieve a fair return on creative and promotional activities". He applauds the "understandable" reluctance to afford rights "in respect of every conceivable return form the use of an idea".¹⁸⁴

Finally, the development of the tort of passing off in Australia--to protect the value of success--was likely to run up against the English judicial antipathy to fame. There are early dicta to the effect that the unauthorised use of a celebrity in advertising is something the celebrity brought on himself. So in *Clark v Freeman*¹⁸⁵ Lord Langdale noted that a person of the social status of the plaintiff had to accept such exploitation as the price of their eminence as "the very eminence causes it"; while in *Tolley v Fry*¹⁸⁶ Greer L.J. noted that the plaintiff having "voluntarily" entered into professions "which by their nature invite publicity" deemed it not unreasonable that he should submit without complaint to his name and reputation being treated "almost as public property".¹⁸⁷ Madow¹⁸⁸ sums up the English attitude thus: "that famous people are a kind of public property whose commercial exploitation, while sometimes deplorable, should not be subject to legal control".

So in English law the celebrity cannot claim some right to image or name but is left to find an appropriate tort or civil wrong to fit the bill,¹⁸⁹ in the absence of an overarching right and against a background of judicial antipathy to fame. Defamation proved useful in *Tolley v Fry*,¹⁹⁰ when it was held by the House of Lords in 1931 that the *I.P.Q. 235 implication that an amateur golfer had been paid a fee for endorsing a chocolate bar would lower him in the eyes of society. In *Pollard v Photographic Co*¹⁹¹ breach of contract was the action used to obtain an injunction to prevent the defendant photographer who had been commissioned to take the plaintiff's portrait from selling or exhibiting copies without her consent. The action for inducing breach of contract or unlawful interference with trade¹⁹² may be useful where, for example, exclusive contracts already bind a celebrity to another advertiser.¹⁹³ Malicious falsehood may be useful where there is a disparagement or other trading harm. And should the celebrity's "private space" have been invaded in order to obtain the image, then an action for breach of confidence may arise, especially as the action is no longer limited to a previous relationship.¹⁹⁴

But what about the tort of passing off? Despite the traditional approach noted above, it was clear that the celebrity industry would seek to explore the "modern" judicial approach to the tort of passing off in their quest to create maximum legal protection. The tort places limits on the type of commercial behaviour in which the defendant is allowed to indulge. Though not a tort of unfair competition as such,¹⁹⁵ it focuses on an intangible property right--customer connection or "goodwill" as it is termed--and broadly prevents the defendant from making a gain that "belongs" to the claimant. However, the heart of the tort remains misrepresentation--the defendant must be shown to have harmed the claimant's goodwill through a material misrepresentation.¹⁹⁶ His misrepresentation, in other words, must have made a difference in consumer choice. And that must have harmed the claimant's customer connection--in the case of a celebrity either because he is already in the business of persona exploitation or because the misrepresentation may injure his "professional" reputation.

The initial judicial response to celebrity demands was obscured by an apparent focus on the need to show that the parties were engaged in a common field of activity.¹⁹⁷ However, on closer inspection it becomes clear that the judicial response from the 1940s **I.P.Q. 236* was in fact based on an adherence to an orthodox application of the tort. There were to be no special rules being accepted for celebrity plaintiffs,¹⁹⁸ in contrast to the Australian approach. In the famous case of *McCulloch v May*¹⁹⁹ the plaintiff was a well-known radio broadcaster, using the name "Uncle Mac". The defendants sold breakfast cereal under this name (and the text on the packet appeared to refer to this celebrity's well-known physical disabilities). However there was no goodwill and at that time no practice of merchandising with which the public would have been familiar. The classic form of the tort was therefore not made out.

This traditional approach--applying the tort no differently to celebrity cases as to others--remained the approach in the later part of the twentieth century. Though the English courts gradually accepted the phenomenon of celebrity licensing and merchandising,²⁰⁰ they stayed true to the essential requirements of the tort of passing off. The classic trinity of the tort--misrepresentation (and a material misrepresentation at that), goodwill and damage--was rigorously applied, in contrast to the approach of the Australian High Court in *Henderson*.

So in *Lyngstad v Annabas*²⁰¹ where the pop group Abba objected to the defendants cashing in on their popularity by producing T-shirts and pillow slips to which their images had been applied, no liability ensued, there being no material misrepresentation. Oliver J. asserted that consumers would not believe that the group had given their approval to the merchandise but rather they would assume "that the defendants were ... catering for a popular demand among teenagers for effigies of their idols". The lack of goodwill was also stressed--Abba had at the time not started any merchandising of their image. In *Harrison v Polydor*²⁰² two of the Beatles objected to the use of photos of the Beatles to adorn a record of interviews with them taped in their heyday. They alleged this would be seen as endorsement or recommendation by them of the product. However, Walton J. found this assertion "quite ridiculous" as, given the content of the records, the photos would simply be seen as illustrations. And the need to show a *damaging* misrepresentation was stressed in *Stringfellow v McCain Foods (GB) Ltd.*²⁰³ There, although possible confusion was found by the court, there was no evidence of damage. The plaintiff--a celebrity night club owner--was not merchandising his name and there was no likely adverse affect on the reputation of his club. This has led Wadlow to conclude: "the fundamental distinction between the English and Australian **I.P.Q. 237* authorities is whether a misrepresentation that one business is licensed by another is conclusively assumed to damage that other, or whether likelihood of damage must be proved in its own right".²⁰⁴

This same insistence on the application of a traditional passing off framework can be seen in "publicity rights" cases some 20 years after *Abba*. These reveal that misrepresentation is still the key to the tort. Both Laddie J. and the Court of Appeal in *Re Elvis Presley Trade Mark*²⁰⁵ rejected the view that the celebrity and his commercial partners own the celebrity's appearance.²⁰⁶

Something more is required; some inference of association with the celebrity or the licensee has to be present.²⁰⁷ Laddie J. noted (with regard to trade mark law generally), "when a fan buys a poster or cup bearing an image of his star, he is buying a likeness, not a product from a particular source". In effect he accepted that consumers are "generally indifferent as to source" when it comes to mementoes. On appeal the Court of Appeal were asked to accept a free-standing general right to character exploitation enjoyable exclusively by the celebrity. Prescott Q.C. argued on behalf of the Elvis Presley Foundation that the law had evolved to the stage where there is a general rule that a trader may not make unauthorised use of the name of a celebrity.²⁰⁸ This was rejected. Simon Brown L.J., echoing the traditional common law approach, asserted that "monopolies should never be so readily created"²⁰⁹ while Robert Walker L.J. noted that though there had been some success in preventing unauthorised versions of popular cartoon characters,²¹⁰ that decision "does not give a green light to extravagant claims based on any unauthorised use of a celebrity's name". Rather, both courts stressed the traditional need for a material misrepresentation.

Clearly, the view at the end of the twentieth century was that to argue for a general personality exploitation right was "a commodification too far".²¹¹ This approach was reflected in the passing off case subsequent to *Elvis Presley, Halliwell v Panini SpA*.²¹² Here the defendants' unauthorised sticker collection featuring the Spice Girls was not **I.P.Q. 238* found to present itself implicitly as "official" and hence there was no relevant misrepresentation for the tort to apply.²¹³ The net result is that as English law entered the twenty-first century it was true to say that no wrong *per se* resulted from the unauthorised exploitation of the persona of a celebrity, however "unfair" this may appear to the celebrity industry.

FUTURE UNCERTAINTY IN THE ENGLISH APPROACH

Though there is still no specific right to an image or to the commercial exploitation of personality, the view of this writer is that there are reasons to believe that English law may develop in this area; that, in other words, the celebrity industry's quest for protection may receive a more favourable response from the courts in the future.

First, the tort of passing off is still developing. And arguably, the pressure to develop specific protection for celebrity exploitation has finally paid off in the decision in *Irvine v Talksport*. This is reviewed in detail below, but the elaboration of the tort by Laddie J. (accepted by the Court of Appeal) has similarities to the approach taken to the tort of passing off in *Henderson*. More generally there is a misappropriation feeling²¹⁴ creeping into the tort of passing off in recent cases with dicta to the effect that passing off has room for development, in line with "modern commercial practice". And of course as the tort of passing off and registered trade mark law are closely linked so the developments in the law on registered trade marks--extending protection for strong trade marks on the basis of unfair competition--clearly offer hope to those seeking stronger protection of "celebrity magnetism" both within the registered system and beyond.

Secondly, English common law may be at the start of the development of a privacy right--a right which has spawned the publicity right in America and which has been seen as the linked right to a personality/publicity right in leading European states.

The tort of passing off

As we have seen, English law has no express unfair competition law, but the tort of passing off--accepted as an elastic tort that prevents unfair trading--has been the **I.P.Q. 239* subject of pressure for development particularly in the area of advertising and promotional activities.

With this tort there is a need to show a misrepresentation that has harmed the claimant's customer connection. In the classic case of passing off, the defendant represents his goods as those of the claimant: source misrepresentation in other words. And the classic heads of damage in the tort are diversion of trade (loss of sales or royalties) and devaluation of reputation (through the substitution of inferior products or through injurious association). Such standard concepts offer little hope for celebrities seeking to control and profit from their image use.

However the basic ingredients of the tort have been given a wider remit in recent years. So, connection misrepresentation--a very diluted form of source misrepresentation--is now accepted to be part of the tort. Here the claimant simply alleges that the defendant is falsely indicating a link between himself and the claimant. What is not clear yet is the exact nature of the misconnection that must be shown by the claimant.²¹⁵ There has also been a widening of the type of goodwill protected by the tort. After the House of Lords' decision in *Advocaat*²¹⁶ goodwill includes not only source goodwill but also quality goodwill, "extended" passing off as this is sometimes referred to. Again, there have been developments in the type of harm to customer connection that may be within the tort, allowing more exotic (and less precise) varieties of harm to be successfully alleged. So loss of licensing opportunity, loss of distinctiveness or loss of control have been alleged. What lies behind such vague allegations are attempts to complain about misappropriation and they are indeed sometimes rolled together in the concept of "dilution". Dilution involves a "blurring or erosion" of the mark/image.²¹⁷ This vague allegation, added to the vague concept of a connection misrepresentation and a widening notion of what constitutes goodwill means that the tort promised in the twenty-first century to be more useful for the celebrity industry than it had before.

And indeed, *Irvine v Talksport Ltd*²¹⁸ revealed that the tort continues to expand, in line with the celebrity industry pressure. This is the first judicial acknowledgment that the tort of passing off renders unlawful "false endorsement" involving a celebrity. *Irvine* involved a promotional campaign by the defendants to rebrand their radio station, Talk Radio, into Talksport, focusing on sport rather than news and general talk programmes. Promotional material was sent to about 1,000 people responsible for the placement of advertising. This included a brochure on the front page of which was a photo of Eddie Irvine, the successful Formula 1 driver.²¹⁹ This photo had been manipulated to remove the mobile phone that Irvine actually had in his hand and to replace it **I.P.Q. 240* with the image of a portable radio to which the words "Talk Radio" had been added.

For Laddie J. this false "endorsement" was the tort of passing off and on this he was upheld by the Court of Appeal.²²⁰

Endorsement was implied in the photo, as manipulated. Laddie J. asserted that endorsement involves telling the relevant public that the celebrity approves of or is happy to be associated with the product/service: "in effect he adds his name as an encouragement to buy or use the service or product". He distinguished this "endorsement" from merchandising which simply exploits images that have become famous without necessarily implying endorsement.²²¹ To distinguish the two concepts Laddie J. exemplified the sale of memorabilia relating to the late Diana, Princess of Wales. He noted, "a porcelain plate bearing her image could hardly be thought of as being endorsed by her, but the enhanced sales which may be achieved by virtue of the presence of the image is a form of merchandising".

Furthermore, this endorsement was false. Irvine was not in fact endorsing the radio station but a significant proportion of people to whom the brochure sent would think he had endorsed or recommended it.

Thus two of the three elements of the tort were made out. As for the third--harm to goodwill--Laddie J. found that the false endorsement would harm Irvine's merchandising business. He asserted: "[Irvine] has a property right in his goodwill which he can protect from unlicensed appropriation consisting of a false claim or suggestion of endorsement". The harm was dilution/loss of licensing opportunity. In coming to his conclusion Laddie J. rejected the authority of *McCulloch v May*²²² which appeared to require that in a passing off action the parties be in competition in some way (the so-called "common field of activity" doctrine). This doctrine suggested that those who use the claimant's well-known personality to promote their own product could not be liable in passing off because the claimant was not involved in producing goods--the parties were not therefore in competition. However, it has been obvious for some time that the tort of passing off does not require a "common field of activity" between the parties.²²³

Like *Henderson*, the application of the tort of passing off in *Irvine* could be read at face value to be a simple application of the orthodox ingredients of the tort. Laddie J. had after all found misrepresentation and harm to existing goodwill. However, as with *Henderson*, on closer reading, Laddie J.'s application of the tort of passing off involves a radical realignment of the tort, at least where image rights are concerned. Though the classic trinity appears to be applied, there is an extended meaning applied to all three ingredients. The result is that rather than an orthodox application of the tort, the decision can be interpreted as protection against misappropriation of fame. So Laddie **I.P.Q. 241* J. noted that it was Irvine's "fame and personality" which were exploited²²⁴ --with the defendants "squatting"²²⁵ on this magnetism--and that this "unlicensed appropriation"²²⁶ was tortious, given the unlicensed use of the claimant's reputation will "reduce, blur or diminish" the exclusivity of that reputation.

Thus in order to prove false endorsement the claimant had only to raise a rather tenuous "association" misrepresentation.²²⁷ The need to show "goodwill" (customer base) appeared to have been refashioned as the need to protect the value of the claimant's "reputation" or "fame"--in other words the "grab value" of the claimant. Goodwill was thus extended to include "promotional goodwill"--"the attractive force which is the reputation" of Irvine.²²⁸ And the type of harm to be shown as likely became the vague concept of dilution.²²⁹ The judge accepted that there was no damage in the direct sense but rather "the law will vindicate the claimant's exclusive right to the reputation or goodwill". In essence the defendants had acted unfairly and were to pay for taking advantage of a reputation without paying for it.²³⁰

It is hardly surprising, therefore, that Laddie J. cited with approval the Australian decision in *Henderson v Radio Corp Pty Ltd*.²³¹ Here, as we have seen, Evatt C.J. noted "the wrongful appropriation of another's professional or business reputation is an injury in itself, no less, in our opinion, than the appropriation of his goods or money". Indeed, like Manning J. in *Henderson*, Laddie J., in applying the tort, stressed the evolving nature of the action for passing off. So, he asserted, "passing off is closely connected to and dependent upon what is happening in the market place. It is a judge made law which tries to ensure, in its own limited way, a degree of honesty and fairness in the way trade is conducted." Though the "old cases" may provide us with the origins of the tort "they do not illustrate more recent developments".²³² Overall, he saw the underlying principle of the tort to be "the maintenance of what is currently regarded as fair trading".

***I.P.Q. 242** This emphasis on misappropriation can be found in other passing off litigation.²³³ With the tort of passing off generally, claimants have seen the potential rewards of obtaining a wider coverage for a tort--acknowledged as protean--which offers protection for commercial magnetism. The assumption in attempts to widen the coverage of the tort is that the tort should protect more generally against misappropriation. Such an aspiration was clearly fired by dicta in the *Advocaat* case, expanding the tort to include not only source misrepresentation but product misrepresentation.²³⁴ And there have been judicial dicta since which leave the door open for development.²³⁵ This is especially where the judge takes a dim view of the defendant and feels that "theft" has taken place.²³⁶ Often in such cases a shift in emphasis can be detected, the court focusing not on harm but on unfair gain by the defendant. So in *Taittinger SA v Allbev Ltd*²³⁷ Sir Thomas Bingham contended that the use of the prestige name "champagne" by the defendants meant that they were "cashing in" on the reputation of that beverage. Sir Michael Kerr in *Harrods v Harrodian School*²³⁸ asserted that the defendant was not entitled to "ride on the back of" the reputation of Harrods. Again, in *Kimberley-Clark Ltd v Fort Sterling Ltd*²³⁹ Laddie J. asserted that the courts should protect against a competitor "strengthening his position" by taking the benefit of the plaintiffs' mark. Indeed, the same judge in *Matthew Gloag & Son Ltd v Welsh Distilleries Ltd*²⁴⁰ allowed as arguable an allegation that the unacknowledged use of the plaintiff's quality product (Scotch whisky) in the defendant's fun product ("Welsh" whisky) was some sort of (unspecified) passing off. The terminology used through the judgment reveals this to be a misappropriation case:

the defendants being characterised as free-riders on the quality of the plaintiff's product. Again, in *One In A Million* ²⁴¹ Aldous L.J. commented that earlier case law did not confine the cause of action forever "as to do so would *I.P.Q. 243 prevent the common law evolving to meet changes in methods of trade and communication as it had in the past". Subsequently in *Arsenal* ²⁴² the same judge asserted that the tort could "best [be] referred to as unfair competition" and that the traditional form of passing off "is no longer definitive of the ambit of the cause of action".

All such dicta fuel the celebrity industry campaign to enhance passing off protection. And indeed, this growing tendency in passing off cases is clearly in line with developments in registered trade mark law. This is hardly surprising, given the tort of passing off is often pleaded side by side with an allegation of registered trade mark infringement. Like the tort, the prime justification for registered trade mark liability remains the protection of the origin or quality function of a registered trade mark. However in recent years the European Court of Justice (ECJ) has espoused the additional modern function of trade marks, as advertising assets in their own right. ²⁴³ So misappropriation of this trade value appears to be at the heart of the admittedly far from lucid ECJ decision in *Arsenal*. ²⁴⁴ This seemed to accept the opinion of A.G. Colomer that registered trade mark law should protect against the use of a trade mark even on clearly "unofficial" merchandise which featured the famous club's logos. This wider protection to trade marks is a clear indication that value is given to commercial magnetism over and above any consumer information role traditionally afforded to trade marks: the Court of Appeal, applying the ECJ judgment, held that the trade mark proprietor must be protected against competition which threatened to take unfair advantage of the status and reputation of the trade mark by selling goods "illegally" bearing it. And this trend has continued in the subsequent ECJ decisions in *Davidoff v Gofkid* ²⁴⁵ and *Adidas-Salomon AG v Fitnessworld Trading Ltd.* ²⁴⁶ In both these cases, the ECJ has accepted that states are entitled to provide extended protection (beyond the clear wording of the Directive) for well-known ²⁴⁷ registered marks where unfair competition--taking unfair advantage or impairing its distinctive character--is concerned.

The recent developments in registered trade mark law--based on ECJ decisions--mean that brands and marks are now protected as valuable assets in their own right, ²⁴⁸ with third parties prevented from cashing in on their success. In essence the celebrity industry would hope that a similar rationale would shape the development of the tort of passing off to extend tort protection for their "celebrity brand".

An emerging tort of privacy?

The academic discussion surrounding the likely effect of the incorporation of the European Convention on Human Rights (ECHR) into English law by the Human **I.P.Q. 244* Rights Act often centred on the possibility of privacy protection emerging within the common law, with the Convention privacy right as catalyst. ²⁴⁹ So, Lester and Pannick forecast that the law of confidence would "subtly" be developed to include a right of privacy, in line with Art.8. ²⁵⁰ And

such suggestions appeared to bear fruit in the observations of the Court of Appeal in *Douglas v Hello! Ltd.* ²⁵¹

Here, the celebrity couple Michael Douglas and Catherine Zeta-Jones gave exclusive rights to *OK!* magazine to publish photos of their wedding. The couple retained wide rights of approval over all material for publication. For everyone else photographs were strictly forbidden both at the wedding and the reception, with elaborate security measures taken to enforce this prohibition. However, despite this, unauthorised photographs were surreptitiously taken and sold to the defendant, *Hello!*, a rival celebrity magazine. Essentially the Court of Appeal had to decide whether to continue an injunction, preventing *Hello!* from publishing the photographs, until the trial of the action. They determined that on the balance of convenience they would not continue the injunction, though the action for damages would obviously continue. However what is interesting in the Court of Appeal's approach is the general discussion of the development of a privacy action in English law contained in the judgments.

The claim centred on the action for breach of confidence ²⁵² but the Court of Appeal felt that there were problems in applying that action, given the surreptitious photographs may have been taken by a stranger or intruder, rather than a guest or waiter. ²⁵³ In light of this they discussed the evolving nature of that claim, against the background of Art.8 ECHR. Indeed, before the Court of Appeal counsel for the claimants' asserted that their concern was more to do with privacy than confidentiality. ²⁵⁴ According to Sedley L.J. the law recognised a right to personal privacy, grounded in the equitable doctrine of breach of confidence. He expressly rejected the view of the Court of Appeal in *Kaye v Robertson*, ²⁵⁵ noting that "the legal landscape has altered". He asserted that though in the past the courts have done what they can to stop bad cases of privacy invasion, using such civil wrongs as they could, "they have felt unable to articulate **I.P.Q. 245* their measures as a discrete principle of law". However, a point had now been reached "at which it might be said with confidence that the law recognises and will appropriately protect a right of personal privacy", ²⁵⁶ especially given the "increasingly invasive social environment". ²⁵⁷ The final push to acceptance had been Art.8 ECHR. So the common law "can now recognise privacy as a legal principle drawn from the fundamental value of personal autonomy". ²⁵⁸ Keene L.J. also asserted that *Kaye v Robertson* would be decided differently today and noted that no claim in breach of confidence was mounted in that case. For him the boundaries of the action for breach of confidence were not immutable "but may change to reflect changes in society, technology and business practice". ²⁵⁹

When the matter finally came to trial, before Lindsay J., the issue was seen to centre not on privacy but rather on confidential information within a commercial context. In some ways the focus on privacy and emotional upset was seen to be a wrong turning. In effect the case was one where image rights were being defended and where the photographs which offended the stars could be identified as information around which a barrier of confidentiality had been erected. ²⁶⁰ That being so Lindsay J. refused to be drawn on the question of an emerging privacy tort. To an extent he

poured cold water on it, preferring Parliament to take the initiative in this area. Indeed, he compared Sedley L.J.'s "powerful case for its existence" with the *obiter* remarks in *Wainwright v Home Office*,²⁶¹ in which Mummery and Buxton L.JJ. foresaw difficulties in the judicial development of such a "blockbuster" tort. Yet he did feel that a privacy tort could be on the horizon, warning that as the ECHR had recently declared the inadequacies of our law on confidence in *Peck v United Kingdom* any prevarication by Parliament may yet require the judiciary to create just such a right.

Most recently, the House of Lords in *Campbell v MGN Ltd*,²⁶² though acknowledging that the protection of various aspects of privacy is "a fast developing area of the law" spurred by enactment of the Human Rights Act 1998, did not find there to be a new privacy right: Lady Hale is clear on this, citing the House of Lords' decision in *Wainwright*. However the House stressed that the boundaries of the action for breach of confidence continue to develop, with Lord Nicholls noting that the continuing use of the phrase "duty of confidence" and the description of the information as "confidential" in relation to the ingredients of the action was, in its modern application, **I.P.Q.* 246 "awkward". He suggested that the essence of the modern action (which interestingly he refers to as a tort) is now better formulated as "misuse of private information".²⁶³ Lord Hoffmann referred to Sedley L.J.'s remarks in *Hello!* as "perceptive", with a new approach to the cause of action based on the protection of "human autonomy and dignity". Clearly this action is ripe for further extension, Lord Hoffmann stating that the wider emphasis on "the right to control dissemination of information about one's private life and the right to the esteem and respect of other people" had implications for the future development of the law. However it is likely to be a slow case-by-case development.

SHOULD ENGLISH LAW DEVELOP IMAGE RIGHTS?

If English law is on the brink of developing image rights in some shape or form it becomes critical to analyse the justifications for such a development.

Although the development of the publicity right in America has spawned a phenomenal amount of literature, Madow notes the "surprisingly little interest in the basic question of justification"²⁶⁴ and asserts that there is an "overwhelming consensus within the American legal community that the right of publicity is a good thing".²⁶⁵ Indeed, the leading American commentator in this area, Thomas McCarthy, sees the personality right as "a self-evident right needing little intellectual rationalisation to justify its existence". Further, the case that first accepted the right--*Haelen*--is based on the view that interests which have a pecuniary value should be protected. But giving legal form to a pre-existing commercial practice--"a massive exercise in question begging"²⁶⁶--is hardly a satisfactory basis on which to analyse the development of the law.²⁶⁷ If English common law is moving in the direction of accepting the protection of image rights, good reasons must be found to restrict those commercial activities which are based on unauthorised use, together with a clear acceptance that any ensuing restrictions--commercial or otherwise--are acceptable.²⁶⁸

Three justifications

The justifications for publicity rights, in jurisdictions where they exist, fall into three main areas.

**I.P.Q. 247 Misappropriation*

At the heart of this justification is Locke's labour theory of property²⁶⁹ --that an individual has a property right in their own body and in the labour of their body. This argues for actual proprietary rights to be acknowledged in the expenditure of mental or physical effort "which brought the celebrity entity into being".²⁷⁰ Terry suggests: "the broad principle should be that no person may use the name or likeness of another or of a character created and exploited by another, without the latter's permission". This justification is based on the view that just as goodwill is seen as a sort of property right in the tort of passing off, the effort and skill put into the production of a successful "character" should be afforded quasi-property rights.²⁷¹ So in *Midler v Ford Motor Co*²⁷² the conduct of the defendant in creating a soundalike of the famous singer for its car commercials was likened to that "of the average thief".

This is clearly the main justification advanced in America,²⁷³ Canada and also in the *Henderson* approach to passing off in Australia. It relies on "common-sense"²⁷⁴ or "fairness"²⁷⁵ to demand that the commercial magnetism "belongs" to the celebrity. Judge Franks asserted in *Haelen*, "many prominent persons ... would feel sorely deprived if they no longer received money for authorizing advertisements, popularising their countenances, displayed in newspapers, magazines, buses, trains and subways".²⁷⁶

Of course, the notion of misappropriation also entails the prevention of unjust enrichment.²⁷⁷ Nimmer argued that because the celebrity has nurtured "the fruit of publicity values" he should benefit from this²⁷⁸ and be able to prevent others reaping what they have not sown. The law should prevent the unfair enrichment of the undeserving through unauthorised profit from another's celebrity. Again American **I.P.Q. 248* case law has accepted this: the right "prevents unjust enrichment by providing a remedy against exploitation of the goodwill and reputation that a person develops in his name or likeness through the investment of time, effort and money".²⁷⁹ This reflects the view taken by the majority in the Supreme Court decision of *International News Service v Associated Press*²⁸⁰ that distributing news as your own when in fact it had been compiled by the plaintiffs was "reaping the fruits of [its trade rivals'] efforts and expenditures".

Publicity as a personality right

The protection of personal autonomy and dignity is the basis of the civil law tradition,²⁸¹ an acknowledgment that every human being possesses certain fundamental rights, linked to their personality. Of course, privacy is also seen as a personality issue but the acceptance of a personality

right goes beyond the realm of intimacy or seclusion, seeking to protect autonomy and liberty. As with "moral rights", this justification can be used to protect against having your persona connected with commercial products you have not chosen. Hauch notes, "just as the author's moral rights give him control over his artistic creation, so the other personality rights give individuals the power to control the use of various attributes of self" and that includes the control of his own image.²⁸²

It is Hegel who maintained that such personality rights justify property rights.²⁸³ As Hughes notes, "such a justification posits that property provides a unique or especially suitable mechanism for self-actualisation, for personal expression and for dignity and recognition as an individual person".²⁸⁴ Essentially the thesis is that the ability to control resources in the "external environment"²⁸⁵ is best effected by the bestowing of property rights. Unlike Locke, therefore, such a rationale does not justify intellectual property rights by analogy with tangible property but rather bases the rights it demands on the fact that the creations are an external expression of the creator's personality.

Economic justifications

The more modern approach in Anglo-American literature for the justification of intellectual property laws generally is to argue for their economic benefits. So with the publicity right there are those who stress the economic justifications that lie behind it. These are:

***I.P.Q. 249** • That the publicity right provides incentives to creation, parallel to the main Anglo-American rationale for copyright protection. Shipley argues that by protecting the right to publicity the law "provides incentive for performers to make economic investments required to produce performances appealing to the public"²⁸⁶ while Felcher and Rubin assert that the social policy underlying the right of publicity "is encouragement of individual enterprise and creativity by allowing people to profit from their own efforts".²⁸⁷ This justification can indeed be seen in the only Supreme Court decision on publicity rights, *Zacchini v Scripps-Howard Broadcasting*.²⁸⁸

- That the publicity right leads to allocative efficiency. "Personality" or celebrity status is to be seen as a scarce resource, with over-use leading to diminished usefulness. By bestowing property rights there will be a more efficient allocation of resources.
- That the publicity right may help prevent consumer misinformation: a much narrower economic justification than the two above. This lies behind the traditional English approach to the tort of passing off and would limit the publicity rights to the prevention of "false endorsement". It would also, unlike the other justifications, not require a full property right to be granted, in order to fulfil its role.

The justifications revisited

How strong are these justifications and what are the *disadvantages* of accepting a publicity right?

On closer inspection, none of these justifications provides a compelling reason to create a new right or to distort existing rights contained in torts such as passing off.

Misappropriation revisited

To justify a publicity right on the grounds of preventing "misappropriation" is to presume that the moral argument is clearly in favour of celebrity protection. So McCarthy speaks of "common sense" requiring publicity rights. However, it is not obvious to all commentators (or judges) that celebrity magnetism "belongs" to the celebrity. Consumers, the media and those who produce and manage the celebrity play a pivotal role in success, leading Madow to comment that it is wrong therefore to have an "individualistic picture of public image formation ... though this dominates case law".²⁸⁹ Interestingly, one of the reasons Catherine Zeta-Jones asserted she was persuaded to let *OK!* magazine publish exclusive photographs of her wedding was the fact that she and Michael Douglas "accepted as celebrities we have an obligation not to ignore those people who make us celebrities".

Indeed, to see the successful image in entertainment or the media as a "stand alone" phenomenon in many ways misses the point of celebrity as icon. Entertainment or **I.P.Q. 250* media celebrities are on the whole themselves derivative--the obvious example in recent years being Madonna and her homage to Marilyn Monroe. For Madow the star draws on "our culture's image bank" and yet tries to "halt the free circulation of signs and meanings at just the point that suits them".²⁹⁰ And as Spence points out,²⁹¹ "[the Crocodile Dundee character was effective because] he stood on the shoulders of a whole tradition of bushman stereotypes that had been developing in Australian culture since at least the 1890's".

Again, once celebrity status is "achieved" does "common sense" demand that the persona should not be used by others as inspiration for developing ideas or simply to provide fun--*i.e.* the transformative use of celebrity. In the late 1990s Schweppes ran an advertising campaign using lookalikes of such celebrities as Posh Spice, Sven-Goren Eriksson and Camilla Parker Bowles which was both creative and fun, underlining the fact that a celebrity (as celebrity, rather than as private person) becomes part of "the public domain"²⁹² to be used for developing ideas. A more recent example of a fun use of celebrity to catch consumer attention was the advertising campaign run by easyJet featuring the photograph of Major Charles Ingram with the caption "time to leave the country". At the time the Major's cheating on the television game show was headline news and the butt of many jokes.

Finally, the misappropriation rationale fails to acknowledge that celebrities already receive adequate compensation for their expertise. Why should collateral, additional reward be legally protected beyond "the primary activities to which they owe their fame".²⁹³

Personality rights revisited

As for the personal autonomy argument, this rationale for intellectual property is not part of the Anglo-American tradition. Indeed the lukewarm reception given to "moral rights" on both sides of the Atlantic is evidence of this. Moreover, it is difficult to argue that all successful "images" reflect the ingredient of personal expression or are in other words a product of the individual. What of undeserved or fortuitous celebrity, the "dumb luck" referred to by the court in *Vanna White*²⁹⁴ or the case of notoriety leading to celebrity, as is instanced by the case of Major Charles Ingram, noted above? Moreover, as a rationale it appears to justify something closer to privacy or reputation **I.P.Q. 251* rights²⁹⁵ rather than a property right. For Madow if this is the basis of a justification to prevent unwanted associations, "that protection can be afforded without an assignable and descendible property right in identity".²⁹⁶

Economic justifications revisited

It was noted above that the incentive rationale, on a par with copyright rationale, was favoured by the Supreme Court in *Zacchini v Scripps-Howard Broadcasting*.²⁹⁷

The theory is that by affording property rights the law provides an incentive to creative endeavour. But what evidence is there for such incentive effect? Are we confident that a publicity right results in increased "innovation" or economic activity? Are property rights necessary to motivate success? Rather, might not publicity or image rights be seen by all those concerned (celebrity and public) as additional benefits--the real incentive to endeavour is the original desire to excel in sport, politics or entertainment generally.²⁹⁸ Moreover, unlike copyright protection, is it obvious that the public interest is being served by the "creations" that result we are told from such protection, given that a publicity right encourages not so much the original activity that led to the fame but rather the commercial activity in marketing the resulting image?²⁹⁹

What then of allocative efficiency as a justification? Of course it makes sense to ensure the efficient use of scarce resources and to prevent overexploitation, by bestowing property rights on such resources. But as Madow points out here we are not dealing with a non-renewable natural resource like land. Nor, however annoying it is for the individual celebrity concerned, is the cost of free use significant, given, as Fraser points out, "a fairly plentiful supply of alternative resources exists".³⁰⁰ Moreover as Goodenough, a supporter of an "identity right" notes, this theory does not explain why the celebrity should be the owner of the publicity value for "the persona could be like a trademark--floating free until some user puts it into commerce, at which point the property right would go to the user, not the person involved. Allocative efficiency would be promoted just as

well, if not better, by such a scheme, and so allocative efficiency arguments are at best only part of the story".³⁰¹

Then there is the final economic justification: the prevention of misinformation. Rather than create rights against misappropriation, this justification focuses on the prevention of harm where there is a clear public interest also served. This is a manifestly worthwhile rationale--combining protection of the celebrity's success with **I.P.Q. 252* protection of the consumer. It reflects the traditional rationale for trade mark law and the tort of passing off. And indeed the thrust of the demand for publicity or image rights owes far more to an analogy with trade marks than with copyright or patents. However this rationale does not justify a new publicity right and it certainly does not require property rights in the image. Rather it cautions an adherence to the traditional reluctance to expand rights in this area. This rationale sees the role of the law as to prevent a misrepresentation that the celebrity endorses the product with which he is being associated and the consequent misinformation leading to inefficient consumer choice. Harm rather than theft is at the heart of this rationale.

Countervailing arguments

All the justifications noted above, bar the prevention of misinformation, raise countervailing arguments, revealing the potential harm of acknowledging publicity rights. Madow (amongst many others³⁰²) argues that both cultural development and free speech are at risk by the acceptance of a publicity right.

It has already been noted that celebrities often cannot be viewed as a separate phenomenon, a discrete item of creativity. Rather they may be part of a tradition or flow of cultural development. It is likely that they achieve fame by calling on a cultural tradition or by questioning a cultural tradition so that they, in themselves, become part of our cultural "commons". So in *Elvis Presley*, counsel for Shaw (who opposed the registration of the Elvis Presley trade marks) described Elvis as having become an important part of popular culture whose name and image other traders might legitimately wish to make use of. Even those celebrities--likely in the sporting world--who achieve fame within their own context arguably "take on public meaning"³⁰³ or in themselves stimulate creativity and innovative/transformational use in others.³⁰⁴ David Lange³⁰⁵ in the forefront of American commentators argues that they become part of the public domain.

Moreover, the celebrity image may be used as a vehicle for social comment or criticism. Free speech is threatened when the publicity right is seen as allowing the celebrity to impose his "preferred meaning"³⁰⁶ not allowing different interpretations by others, though those interpretations may be used for powerful social criticism. Ricketson³⁰⁷ notes "public figures and images ... already command high respect and influence in our society: comprehensive protection for such things may, therefore, represent too great an imposition for a free market and a community committed to free **I.P.Q. 253* speech to bear". Indeed the concern in America over the ever-widening scope of the publicity right is apparent in a spate of recent articles. Sen

warns that "the increasing privatisation of the celebrity ... stifles cultural debate, deliberation and exchange of ideas".³⁰⁸ While the District Court in *Cardtoons LC v Major League Baseball Players Association*,³⁰⁹ in accepting a parody defence for the publicity right, noted that "when the law gives a celebrity a right of publicity ... it gives her ... power, ultimately, to limit the expressive and communicative opportunities of the rest of us".³¹⁰

Overall, it is hard to disagree with Madow that "the proponents of publicity rights still have work to do to persuade us why these images should not be treated as part of our cultural commons, freely available for use in the creation of new cultural meanings and social identities as well as new economic values".³¹¹

False endorsement as passing off

The celebrity industry can scent blood: *Irvine v Talksport* signals a marked advance in their quest for image rights. After the *Irvine* litigation, the solicitor for Talksport was reported in *The Times* as predicting that image-holders would push back the boundaries of protection further and further, with the courts gradually widening the range of image use that can be said to suggest endorsement.³¹² An action for misappropriation appears to be on the horizon.

If, as this article suggests, English law is in danger of moving towards a publicity right, the need for clarity and the need to avoid the wrong turnings of other jurisdictions is stark. Misappropriation, personality rights and economic incentives are all discredited rationales for a free-standing publicity right. The above review of the possible justifications for a publicity or image right reveals that legal control should only arise where there is an unauthorised use of a celebrity image which involves a misrepresentation affecting consumer choice.

***I.P.Q. 254** A false endorsement, involving a material misrepresentation to consumers, merits legal protection. And that protection would obviously arise from the tort of passing off (which of course was the tort relied on in *Irvine*). The central issue then becomes whether the tort of passing off can retain its coherence and rationale by accepting false endorsement within its control. The answer is that the tort can legitimately (*i.e.* in keeping with its established rationale) accommodate such a claim but only if it is properly applied. What *Irvine* indicates is scope for a manipulation of the tort away from misrepresentation and the public interest to misappropriation and the protection of fame *per se*.

This need for clarity involves the flowing key issues (based on the tort's "classic trinity") to be addressed: was there a real suggestion of endorsement; was this "material" to consumer choice; was goodwill harmed? Only if all these ingredients are involved should passing off be found.

The tort of passing off is based on a misrepresentation that harms the claimant's goodwill. The unauthorised use of a celebrity image in advertising *may* involve a misrepresentation, namely that

the celebrity endorses the product concerned. But goodwill and harm to that goodwill also need to be shown as likely.

Goodwill involves trading activity--where trading in an image is concerned the celebrity is asserting goodwill in his endorsement potential. That potential can be harmed by injurious association and by lost licensing opportunities. However, the goodwill at the heart of a false endorsement claim is not the standard "customer connection" goodwill found in the tort. The established forms of goodwill--source goodwill and product goodwill--do not encapsulate what a celebrity like Irvine is concerned about. Source goodwill protects against a misleading connection between the claimant's and defendant's products; product goodwill protects against misleading claims concerning the inherent characteristics of the defendant's product (it is genuine Advocaat or Parma Ham, etc.). But celebrity "goodwill" is a different animal: it is promotional goodwill in a wide sense. Murumba calls this "radiant" business reputation rather than the traditional linear business reputation.³¹³

Promotional goodwill--and the type of harm that goes with it--involves an extension of the tort. And indeed Laddie J. in *Irvine* appeared to acknowledge this. However it would appear that such an extension would still fall within the rationale of the tort. By protecting promotional goodwill, harmed by the defendant's false indication of celebrity endorsement, the tort (as it always does) protects "deserving claimants"³¹⁴ by protecting against consumer misinformation. So it would still be protecting traders where it is clearly in the public interest so to do.³¹⁵

However this viable extension of the tort rests on the presence of an endorsement that turns out to be false. To prevent this extension from masking a reworking of the tort at the expense of the public interest element, there must be an endorsement in a real sense. Without a real message of endorsement there will be no material reliance **I.P.Q. 255* and no harm to promotional goodwill. If this central requirement is applied in a vague way to mean a false implication that there is "some association"³¹⁶ or financial link between the celebrity and the advertised product or service³¹⁷ or indeed if the requirement for a misrepresentation is dropped in favour of protecting against unpaid use of the celebrity for attention-grabbing³¹⁸ then true passing off is not involved. In all these cases the use of the celebrity image, rather than telling the public anything about the product or service involved, simply involves the defendant cashing in on the feel-good factor or magnetism of the celebrity. Rather than misconveying product information, the defendant is merely placing the celebrity image with the product, without paying.³¹⁹ In such circumstances we are closer to what Laddie J. termed "merchandising rights" ("exploiting images"³²⁰) rather than endorsement. And it should be remembered that Laddie J. rejected liability in passing off for mere merchandising.

Should liability arise from mere placement of celebrity image we are replacing the tort of passing off with a publicity/misappropriation tort (as indeed happened in *Krouse*). The tort of passing off centres on protection against misrepresentation, to prevent harm to goodwill and consumer

information--not simply a free ride. Free rides are acceptable, as the decision of the Privy Council in *Cadbury Schweppes Pty Ltd v Pub Squash Co Pty Ltd* ³²¹ made clear

So the need to find apparent endorsement must be strictly applied. What then should be necessary, for liability to apply, in line with the tradition of the tort of passing off? To endorse is defined as "to declare one's approval". ³²² It requires that something is being said about the nature or quality of the product/service with which the celebrity is being associated. That, in other words, the product is being endorsed, rather than simply the celebrity is being "used". Earlier passing off cases brought by celebrities underline this point. So Lightman J. in *Panini SpA v Halliwell* ³²³ asserted that the concept of "endorse" required "that the public would believe on seeing such a publication that it was published by the plaintiffs or that its quality was authorised by them" while in **I.P.Q. 256* the *Abba* case Oliver J. commented that "[the use of the mark must] give rise to at least an inference in the public mind that the plaintiffs exercise some sort of quality control over the defendants' products". ³²⁴ Indeed in the case relied on by Laddie J. in *Irvine, BMA v Marsh*, ³²⁵ the plaintiffs were clearly concerned that their endorsement of the safety of the defendants' products was falsely alleged.

The problem with the discussion in *Irvine* is that a tight definition of "endorse" is not applied. So Laddie J. pinpoints the following as endorsement: "happy to be associated" ³²⁶; "he adds his name as an encouragement to members of the relevant public to buy or use the service or product"; the advertisement was designed "with the intention of grabbing the attention of the audience". ³²⁷ Further he focuses on dilution as the harm involved--a nebulous concept that Welkowitz (when analysing American trade mark law) believes is used covertly to apply a doctrine of misappropriation. ³²⁸ This misappropriation feel in *Irvine* (mirroring that found in *Henderson*) has already been pointed out above: the judge castigating "squatting" ³²⁹ by the defendants who "exploit" Irvine's fame. ³³⁰ Laddie J. is clearly sympathetic to an extension of the tort ³³¹ given he takes judicial notice of the fact that "it is common for famous people to exploit their names and images by way of endorsement ... the reason large sums are paid for endorsement is because, *no matter how irrational it may seem* to a lawyer, those in business have reason to believe that the *lustre* of a famous personality, if attached to their goods or services, will enhance the attractiveness of those goods or services to their target market" (emphasis added). ³³² The impression for the industry is that it should continue to plug away at the tort of passing off and by removing the need for a material misrepresentation create a tort of misappropriation.

To sum up: there is a need to apply the "endorsement" requirement strictly. The tort should only protect the celebrity where the unauthorised use of his image conveys a false message about the product to consumers. Otherwise the other extensions to the tort--to encompass promotional goodwill and lost licensing opportunities--become unacceptably wide. To comply with the traditional framework of the tort it is the informational value of the celebrity image--and that alone--that should be protected. **I.P.Q. 257* The grab value of the celebrity magnet is not *per se*

protected by the tort.³³³ If endorsement is not applied as a strict requirement--to involve consumer misinformation about the product, rather than about the celebrity--then the tort will eventually protect against any linking of the celebrity with a product and harm in the form of dilution will be presumed. This of course would lead the common law to develop the right close to the broad right claimed in *Elvis Presley* and rejected by Simon Brown L.J.³³⁴

The categories of image use reviewed

If celebrities should only be protected against false endorsement, which of the categories of image use discussed at the start of this article would be involved?

The "allegiance use" of celebrity is clearly not within the tort of passing off and should not be prevented. Applying the persona to memorabilia, for example, does not involve any evil that it is in the public interest to stop. And the same is also true of the other example of glamour association, the "biographical information use" of celebrities in magazine articles, etc. Often such stories are accompanied by images of the celebrity on the front page of the magazine, etc. The use of the celebrity in many such cases is as an attention-enhancing ploy rather than a serious attempt to analyse their problems as a celebrity or their acting or sporting techniques. As Murumba notes, "as well as providing news, a number of mass circulation tabloids ... tend to publish and distribute photographs and intimate personal stories of celebrities ... purely for their commercial value. This practice surely constitutes or borders on appropriation of the personalities and identities involved no less than the manufacture and sale of T shirts and trinkets bearing the images, names or other indicia of the same people. [Though the medium differs] ... in both cases the real merchandise is the same: the identities or personalities of the people involved."³³⁵

However, it is vital to appreciate that the "enhancement advertising use" of celebrities should also be seen as part of the "glamour" association of fame, and should, like allegiance and biographical use, be unprotected. An example of highly effective enhancement use is given by Madow.³³⁶ In the 1980s Pepsico paid Michael Jackson to perform one of his songs in their soft drink commercial. Given his specific dietary regime (well-known to fans) the celebrity was not required even to handle the cola product; rather he was being used for eye-catching effect. No endorsement was involved though his mere appearance led to a significant rise in Pepsi sales. Such "enhancement advertising" involves no material misrepresentation. The same could be said of the unauthorised use of Ian Botham's photograph in the Guinness "believe" advertisements; the unauthorised use of Charles Ingram's photograph in the easyJet **I.P.Q. 258* advertisement and the unauthorised use of David Bedford "look-alikes" in the 118118 advertisements. They are fun and add eye-catching material to the advertising but that is all they do. The exposure of celebrities to such use should be seen as the price of fame.

The result of the above analysis is that where celebrity persona use is involved only "informational advertising use" merits legal protection. There is an acceptable use of the tort of passing off where real endorsement is being misrepresented in the advertising. Liability is justified because

the defendant's apparently useful consumer information is likely to be relied upon, harming both celebrity and public alike. Merely taking something of value without paying is not a good reason to interfere with an unauthorised use of a celebrity persona. Harm (based on established torts,³³⁷ though primarily passing off) not unjust enrichment should be the key to liability.³³⁸ The regrettable acceptance of the commercial magnetism of trade marks in registered trade mark law--protecting the stronger marks most rigorously--is no reason to extend the common law in a similar fashion to protect the commercial magnetism of celebrity.

The author would like to thank Andrew Griffiths for his comments on an earlier draft of this article.

Footnotes

- 1 The successful result of this pressure in the US, Canada, Australia, France, Germany and Italy is reviewed below. In England, celebrity "image" litigation has involved, amongst others, Abba, Peter Stringfellow, the Beatles, Elvis Presley Enterprises, the Spice Girls, Eddie Irvine, Michael Douglas and Catherine Zeta-Jones and Ian Botham. Most of these cases are reviewed later in the text. Cornish, *Intellectual Property* (5th ed., 2003), p.618, notes that such litigation has led to calls "for reconsideration of whether there ought to be a specific 'personality right' introduced into English law and there will undoubtedly be further attempts in this direction".
- 2 Treece, "Commercial Exploitation of Names, Likenesses and Personal Histories" (1973) 51 *Texas Law Review* 637 at 646.
- 3 Caenegem, "Different Approaches to the Protection of Celebrities against Unauthorised use of their Image in Advertising in Australia, United States and the Federal Republic of Germany" [1990] E.I.P.R. 452.
- 4 And Frazer argued for such a right in English law 20 years ago: "Appropriation of Personality--a New Tort" (1983) 99 L.Q.R. 281.
- 5 [2002] F.S.R. 943, Laddie J; [2003] F.S.R. 619, CA.
- 6 This may be framed as a privacy claim--as indeed was the claim in *Douglas v Hello! Ltd* at Court of Appeal level, [2001] F.S.R. 40. But, as will be argued later, in the majority of such claims the heart of the dispute is still essentially a commercial claim, as the subsequent High Court trial of the *Hello!* action demonstrates
- 7 [2001] F.S.R. 40.
- 8 It was reported in *The Times*, November 25, 2003, that following his personal outstanding success in the English rugby team that won the World Cup in November 2003 Jonny Wilkinson was to seek to register his "trademark" cradle

gesture "to prevent commercial exploitation of his image". However, the recent ECJ decision in *Siekmann* indicates that there may be a problem supplying the necessary "graphic representation" of this gesture.

9 *Elvis Presley Enterprises Inc v Sid Shaw Elvisly Yours* [1999] R.P.C. 567, CA. Their attempt to register various Elvis Presley trade marks was successfully opposed.

10 This was a major stumbling block accepted by the Court of Appeal in *Elvis Presley* under the 1938 Act and remains a stumbling block under the 1994 Act, given the decisions in *Jane Austen Trade Mark* [2000] R.P.C. 879 and *Diana, Princess of Wales Trade Mark* [2001] E.T.M.R. 25. The famous name might be seen as referring to the subject-matter of the purchase, rather than the source of the product.

11 See s.10 TMA 1994. This obviously poses a problem for those celebrities who wish to register images and photographs rather than just a name, see *e.g. Diana, Princess of Wales Trade Mark*, *ibid*.

12 As *Lyngstad v Anabas Products Ltd* [1977] F.S.R. 62 shows, where celebrities are concerned permission to duplicate the photograph may be given by the photographer/owner against the subject's wishes. The position is different where the photograph has been commissioned for private and domestic purposes: Copyright, Designs and Patents Act 1988, s.85.

13 McCarthy, *Rights of Publicity and Privacy* (1997), para.11.13.

14 See Terry, "Image Filching and Passing Off in Australia: Misrepresentation or Misappropriation" [1990] E.I.P.R. 119 at 120: "the essential complaint in character merchandising is nevertheless not a misrepresentation but a misappropriation".

15 "The Problems of Personality Merchandising in English Law--the King, the Princess and the Penguins", *1998 Year Book of Media and Entertainment Law* 28, p.30.

16 Indeed, Goodenough, "Rethorising Privacy and Publicity" [1997] I.P.Q. 37 suggests that we should accept a general right in "identity".

17 The Justice report, *Privacy and the law* (1970) included appropriation of personality in its draft Privacy Bill. However, the Younger Committee on Privacy, Cmd 5012 (1972) did not mention appropriation of personality.

18 It is interesting to note that defamation was raised in some early English cases where there was an unauthorised use of a famous person in advertising: in *Clark v Freeman* (1848) 11 Beav. 112, 50 E.R. 759; *Dockrell v Dougall* (1899) 80 L.T. 556 and of course successfully raised in *Tolley v Fry* [1931] A.C. 333, HL. Of course defamation could also be used by private citizens whose image is used without permission: *Kirk v AH & AW Reed* [1968] N.Z.L.R. 801.

19 In *Campbell v MGN Ltd* [2004] UKHL 22, [2004] 2 W.L.R. 1232, the House of Lords discussed how the common law should uphold the principle of privacy protection. The court did not find there to be a new privacy right but acknowledged that the boundaries of the action for breach of confidence continue

to develop. Essentially the House of Lords appears to highlight "misuse of private information", information where there is a reasonable expectation that it will be kept confidential. As for future developments, Lord Hoffmann emphasised that the action is about protecting human autonomy and dignity.

20 Prosser, "Privacy" (1960) 48 *California Law Review* 383.

21 *ibid.* at 423.

22 "Privacy or Publicity? The Enduring Confusion Surrounding the American Tort of Invasion of Privacy" (1992) 55 M.L.R. 111 at 114.

23 *Hirsch v SC Johnson & Son Inc* 90 Wis 2d 379. Heffernan J. commenting, "a cause of action for the appropriation of a person's name for trade purposes is different in nature from other privacy torts ... [protecting] primarily the property rights in the publicity value of aspects of a person's identity".

24 433 U.S. 562 (1977).

25 *ibid.* at 573.

26 Just such a celebrity is Dustin Hoffman who in 1999 was awarded \$1.5 million damages (with an additional £1.5 million punitive damages) in Federal District Court, Los Angeles against a magazine which had featured a computer-altered image of Hoffman in woman's evening wear. The judge noted that he was being "robbed of his dignity".

27 Felcher and Rubin, "Privacy, Publicity and the Portrayal of Real People by the Media" (1979) 88 *Yale Law Journal* 1577 at 1620 assert that the right in both instances is the same, namely "the right to be protected against media portrayals for exploitative purposes that cause identifiable harm" but this begs the question of what is meant by harm in this context.

28 Note comment (b) to section 46 Restatement (Third) of Unfair Competition: "the distinction between the publicity and privacy actions, however, relates primarily to the nature of the harm suffered by the plaintiff".

29 H. Storey, "Infringement of Privacy and its Remedies" (1973) 47 A.L.J. 498 at 512; *cf.* Catanzariti, "Swimmers, Surfers and Sue Smith--Personality Rights in Australia" (2002) 13 Ent.L.R. 135: "acknowledging and protecting personality rights protects privacy. But protecting privacy is not the focus and is an unintended incidental."

30 See *e.g. Kaye v Robertson* [1991] F.S.R. 62 and the famous US case, noted below, of *Roberson v Rochester Folding Box Co* 64 N.E. 442 (NY 1902).

31 *e.g. Henderson v Radio Corp Pty* [1969] R.P.C. 218; *Carson v Here's Johnny Portable Toilets Inc* 698 F.2d 831 and *Irvine v Talksport* [2002] F.S.R. 943. All these cases are reviewed in the text. That is not to say that the same episode of unauthorised use of celebrity may not involve invasion of privacy, while endangering commercial links, a possibility acknowledged in the Restatement (Third) of Unfair Competition, which though it separates rights in publicity (unfair methods of competition and commercial injuries) from those in privacy does accept that both may result from an unauthorised exploitation of the plaintiff's identity

- 32 Another reason was that they did not want to annoy their fans by appearing to be
aloof--this again feeds into their celebrity "worth".
- 33 Concerning the continuance of an interim injunction
- 34 [2001] F.S.R. 732 at 775.
- 35 Though Frazer, n.4 above, argues that privacy and publicity are interests that
should not be treated as two different torts (at 299) he accepts (at 295) that "in
any instance of appropriation of personality one of the interests is likely to be
affected to a far greater extent than the others".
- 36 *Cardtoons LC v Major League Baseball Players Association* 95 F.3d, at 976:
"publicity rights, however, are meant to protect against the loss of financial gain,
not mental anguish". And see Morgan, "Privacy, Confidence and Horizontal
Effect: 'Hello' Trouble" (2003) 62 C.L.J. 444 at 450: "[the] two discrete interests,
commercial and dignitary, are aspects of the same legal concern (protection of
image) but crucially, they are separable".
- 37 Cornish, n.1 above, p.618. See also Berkman, "The Right of Publicity--Protection
for Public Figures and Celebrities" (1976) 42 *Brooklyn Law Review* 527: "The
right of privacy essentially consists of the 'right to be let alone' and protects
against injuries to the plaintiff's feelings, which are often precipitated by the
receipt of undesired publicity. Conversely, a claim founded upon the right of
publicity acknowledges the desire and need for publicity that inhere in most
public figures, but seeks to restrain a defendant from appropriating the pecuniary
fruits of a public figure's efforts to achieve recognition."
- 38 As Cornish, *ibid.* notes, "the shift from the defence of the individual against
intrusion to control over the exploitations of personality is a very considerable
one ... any country should think long and hard about competing values before
it moves to a general protection of 'personality' in commercial publicity. If it is
convinced that diggers should have their gold, so be it; but it should not be led to
that belief by crocodile tears about invasions of privacy" (p.735).
- 39 *Cooley on Torts* (2nd ed., 1888), p.29.
- 40 A person's "commercial interest in his popularity", Grodin, "The Right of
Publicity: A Doctrinal Innovation" (1953) 62 *Yale Law Journal* 1123. So (as
discussed later) the attack on the intrusive press by Warren and Brandeis and
the emotional hurt caused to the plaintiffs in *Roberson* and *Pavesch* involved
the same interest being affected. Grodin (at 1130) advises that if courts wish
to protect publicity and also privacy rights "they should do so under separate
doctrines, so that limitations, appropriate to each interest may be imposed".
- 41 Madow, "Private Ownership of Public Image--Popular Culture and Publicity
Rights" (1993) 81 *California Law Review* 125 at 127.
- 42 Colquhoun, *Scotsman*, May 29, 2002.
- 43 "In societies characterised by mass production, consumer capitalism and
mass-media communications, the celebrity image holds both seductive power
and significant economic and cultural value", Coombe, *The Cultural Life of*

Intellectual Properties: Authorship, Appropriation and the Law (Duke University Press, Durham and London, 1998), p.89.

Noted by Robert Walker in *Elvis Presley* [1999] R.P.C. 567 at 584 as "mixed".

Caenegem, n.3 above, at 452, fn.2.

Or rather "conferred" on a celebrity--the process of achieving celebrity is worth bearing in mind when assessing the legitimacy of the celebrity industry's claim to image rights.

Goodenough, n.16 above, terms this "icon" use.

Elvis Presley Enterprises Inc v Sid Shaw Elvisly Yours [1999] R.P.C. 567, CA.

Deyan Sudjic, *Cult Heroes: How to be Famous for more than Fifteen Minutes* (Andre Deutsch, London, 1989).

Indeed celebrities can arise based on negative press coverage. Charles Ingram, the army major convicted of cheating on the "Who Wants to be a Millionaire?" programme tried to have easyJet censured by the ASA for using his picture without permission on a poster.

Hobbs, "Passing Off and the Licensing of Merchandising Rights" [1980] E.I.P.R. 47.

Jaffey, "Merchandising and the Law of Trade Marks" (1998) 3 I.P.Q. 240.

Shelley Lane, n.15 above.

Stephen Ward, *The Times*, October 28, 2003 noted that Ian Botham had sued Diageo, the owners of Guinness, for using his image without consent in their "Believe" advertising campaign. The photograph used was from 1981 when Botham destroyed the Australian team. He alleged passing off, that the advertisement suggested he endorsed Guinness and reputedly won a five-figure sum in an out-of-court settlement. Botham's solicitor noted that if his sponsors and advertisers saw another company getting his magnetism for free they may be tempted to do the same. The same article noted that the former athlete David Bedford objected to the parody of his image in the advertising campaign for the directory enquiry service 118118 and that he was considering taking legal action. Advertising on sport-related websites, for example, is expected to reach \$6 billion by 2005: Boyd, "Does English Law Recognise the Concept of an Image or Personality Right?" (2002) 13 Ent.L.R. 1.

Hatton, "Personality Rights--Developing a Personality of their Own" [1998] I.T.L.Q. 140.

Nic Couchman, *Sports Marketing*, March 12, 2001, p.8.

It is also worth noting that there was extensive reporting of David Beckham's new contract with Manchester United, before the start of the 2002-03 season. The delay in signing his new contract was widely reported to be over the issue of image rights, *The Times* claiming in January 2002 that the player was seeking £50,000 per week on top of his weekly salary of £80,000.

It has also been reported that the Inland Revenue view that the image rights of the Arsenal player, Bergkamp, were capital assets, for tax purposes.

- 60 Goodenough, n.16 above, at 40: "If the mass reproduction and distribution of print and picture were the big media developments of the nineteenth century, the mass reproduction and distribution of sound and moving pictures have been the big developments of the twentieth century. These have further fuelled the rise in the value of human identity." The progression seems to be from "fame" to "celebrity", see Madow, n.41 above, at 152-153.
- 61 *Mackenzie v Soden Mineral Springs Co* 18 N.Y.S. 240 (1891) where a famous English physician successfully objected to the use of his signature and spurious testimonial in connection with the defendant's throat lozenges; *Dockrell v Dougall* (1899) 80 T.L.R. 556 where English courts refused an injunction to prevent the unauthorised use of a doctor's name to sell medicine. And in Germany in the famous *Zeppelin* case, Count Zeppelin successfully objected to the registration of his portrait and name as a trademark for cigars and cigarettes.
- 62 e.g. David Beckham's CTM application in a number of trade mark classes including sunglasses, bags, football shirts and hair lotions.
- 63 As for unfair competition rights, Caenegem, n.3 above, asserts that American unfair competition law and trade practices statutes tend to focus on consumer protection or competitors in a restricted sense (though a celebrity's name or image may be protectable as an unregistered trade mark under the Lanham Act as in *Allen v National Video Inc* 610 F.Supp 612 (SDNY 1985)--the use of a Woody Allen lookalike in the defendant's advert) and as for Germany, though he believes that celebrities may attempt to use unfair competition rights more widely in future, the tendency until now has been to focus on the name and picture rights which seemed most applicable
- 64 It is also interesting to note that in Japan Art.709 of the Japanese Civil Code, which creates liability for intentional or negligent acts, has been the basis for judicial creation of both a privacy right and separately a publicity right where false endorsement seems to be the key to liability.
- 65 "The Right to Privacy" (1890) 4 *Harvard Law Review* 193, relying on cases decided in defamation, contract and breach of confidence. They contended that all were based on a broader common principle. According to Prosser, n.19 above, "it came to be regarded as the outstanding example of the influence of legal periodicals upon the American law (at 383).
- 66 64 N.E. 442 (N.Y. 1902).
- 67 Gray J. in his dissenting judgment questioned why "this young woman" should have to submit to "mortifying notoriety".
- 68 O'Brien, "The Right of Privacy" (1902) 2 *Columbia Law Review* 437: no protection of football star who objected to the unauthorised use of his image in an advertisement given that by deliberately seeking publicity he had "ceased to be a private person".
- 69 50 S.E. 68 (Ga 1905).
- 70 Winfield, "Privacy" (1931) 47 L.Q.R. 23 at 38, asserted that there was more concern over privacy (and therefore more likelihood that law would develop

- to protect it) in the US because "questionable methods of advertisement are commoner in that country than elsewhere".
- 71 Though Prosser, n.20 above, notes (at 388) there was little consideration of what the right involved.
- 72 e.g. *Flake v Greensboro News Co* 195 S.E. 55 (N.C. 1938)--unauthorised use of a celebrity's photograph for a bread commercial.
- 73 Madow, n.41 above, at 169.
- 74 124 F.2d 167 (5th Cir. 1941).
- 75 Interestingly, Goodenough, n.16 above, notes that Prosser's article slowed down the move towards a property-based publicity right.
- 76 202 F.2d 866 (2d Cir. 1953). The decision seems in part to be based on a mistaken view of NY law: *Stephano v News Group Publishing Inc* 64 N.Y. 2d 174 (1984).
- 77 In fact one of the baseball players concerned had purported to sell his image rights to the defendant company two months after selling them to the plaintiffs.
- 78 He did not feel it necessary to decide whether a property right was involved: "whether it be labelled a property right is immaterial; for here, as often elsewhere, the tag 'property' simply symbolises the fact that courts enforce a claim which has pecuniary worth".
- 79 202 F.2d 866 at 868 (2d Cir. 1953).
- 80 Goodenough, "The Price of Fame: the Development of the Right of Publicity in the United States" [1992] E.I.P.R. 55.
- 81 n.41 above, at 167.
- 82 "The Right of Publicity: Going to the Dogs?", Frackman and Bloomfield UCLA Online Institute for Cyberspace Law and Policy (www.gseis.ucla.edu/iclp/rftb.html). Tacha J. in *Cardtoons LC v Major League Baseball Players Association* 868 F. Supp 1266 (N.D. Okla, 1994) noted that it was "further cultivated" by commentators.
- 83 Nimmer, "The Right of Publicity" (1954) 19 *Law and Contemporary Problems* 203.
- 84 *ibid.* at 216.
- 85 n.22 above, at 112, fn.5.
- 86 Prosser, n.20 above, at 40. Indeed he accepted that "it is not impossible that there might be appropriation of the plaintiff's identity, as by impersonation, without the use of either his name or likeness".
- 87 Indeed, in *Reeves v United Artists Corp* 765 F.2d 79 (6th Cir. 1985) it was held that the right of publicity was not descendible because it developed from the privacy right. It is not unusual to have Prosser's work cited in publicity cases. So in the *Vanna White* case, *White v Samsung Electronics America Inc* 971 F.2d 1395 (9th Cir. 1992) (reviewed below in the text) it was cited and referred to as "one of the earliest and most enduring articulations of the common law right of publicity cause of action".
- 88 n.20 above, at 401.

- 89 By this means he attempted to bring Haelen within the orthodoxy of privacy. And indeed, this analysis was subsequently incorporated in 1977 in the Restatement (Second) of Torts Articles 652A-652I.
- 90 433 U.S. 562 (1977). This remains the only Supreme Court case to have addressed the right of publicity. The facts of the case reveal an implicit attempt to attract performers' rights rather than publicity rights *per se*--the defendant had broadcast on a local TV station the plaintiff's "human cannonball" act in its entirety without permission, causing, according to the court, probable economic loss and unjust enrichment. The plaintiff successfully argued unlawful appropriation of his "professional property".
- 91 McCarthy, *The Rights of Publicity and Privacy* (2nd ed.).
- 92 In 25 states. Each state has own criteria for what is protected, what remedies are available and whether they are descendible. There is no federal right of publicity, though some have called for one, see, e.g. Salomon, "The Right of Publicity Runs Riot: the Case for a Federal Statute" (1987) 60 *Southern California Law Review* 1179.
- 93 David Collins, "Age of the Living Dead: Personality Rights of Deceased Persons" [2002] *Albany Law Review* 39. Only 14 states provide a post-mortem right.
- 94 Right to Publicize or Commercially Exploit Deceased Person's Name of Likeness as Inheritable, Annotation 10 A.L.R. 4th 1193.
- 95 The courts will distinguish between use of the celebrity to illustrate an article and use to advertise or glamorise products. So in *Hoffman v LA Magazine* 255 F.3d 1180 (9th Cir. 2001)--where a digitally altered photograph of the actor Dustin Hoffman to represent him in a designer dress (drawing on his role in *Tootsie*) was used to illustrate a fashion article--there was no infringement of his publicity rights. However in *Downing v Abercrombie & Fitch* 265 F.3d 994 (9th Cir. 2001) publicity rights of the plaintiffs--famous former surfers--were infringed when photographs taken when they were at the height of their fame were used to illustrate a catalogue on surf wear.
- 96 Though some state statutes limit the protection to "name, portrait or picture", this does not always preclude a wider common law protection of publicity. Inevitably the media and entertainment centres, New York and California have played "a disproportionate role in the development of this law" Goodenough, n.80 above, at 55.
- 97 698 F.2d 831 (6th Cir. 1983). The nickname "Crazylegs" identified the plaintiff and was sufficient to state a cause of action in *Hirsch v SC Johnson & Son* 90 Wis. 2d 379 (1979).
- 98 513 F.Supp 1339 (DNJ, 1981).
- 99 (SD NY) 455 F.Supp. 252.
- 100 472 NYS (2d) 254 (SC 1984).
- 101 849 F.2d 460 (9th Cir, 1988)--the commercial featured a soundalike, singing a song made popular by Bette Midler. This was based on the common law of

publicity, rather than the Californian Civil Code. Interestingly in *Midler*, the court distinguished the contrary view in *Sinatra v Goodyear Tire and Rubber Co* 435 F.2d 711 (9th Cir. 1970) on the basis that in *Midler* the plaintiff had asserted rights in the performance of the song used

102 971 F.2d 1395 (9th Cir. 1992).

103 The use of the robot did not infringe the California Civil Code which requires that the celebrity's "likeness" is used. However the common law right of publicity meant that there was an issue to be tried (as did the issue of whether there was a likelihood of confusion as to endorsement under the Lanham Act, the "mark" being the celebrity's persona). The court (Judge Kozinski dissenting strongly in the denial of rehearing *en banc* at 989 F.2d 1512) rejected the defence that this was a parody, rather labelling the activity "knock off", *i.e.* profit rather than fun. However such a defence to an action for breach of the publicity right was accepted in *Cardtoons LC v Major League Baseball Players Association* 868 F.Supp 1266 (N.D. Okla, 1994).

104 Anderson, "The Failure of American Privacy Law", in Markesinis, ed., *Protecting Privacy*, p.146.

105 Ellis, "Damages and the Privacy Tort: Sketching a Legal Profile" (1979) 64 *Iowa Law Review* 1111 at 1133 concluded that the tort's "very existence is in doubt at least outside the law reviews", given the emphasis on freedom of expression.

106 TPI Seine, June 16, 1858. (This privacy right was incorporated into the Civil Code (Art.9) in 1970 and was accepted as a constitutional principle by the Constitutional Court in 1995.) There is a privacy right in the Italian Civil Code of 1865 and the Portuguese Civil Code of 1867 while the German Constitution protects the right of personality.

107 So in Germany in 1907 the right to one's image was provided for by Arts 22-24 of the Artistic Copyright Act (prohibiting the publication of a person's portrait without his consent). There is a similar provision in the Italian Copyright Law of 1941 (Art.96). The protection of the right of a person to his name is contained in Art.12 of the German Civil Code while the Italian Civil Code prohibits the unauthorised use of a person's name (Art.6) or image (Art.10). In Argentina the law protects "highly personal rights" including a right to one's portrait in copyright law and the right to prevent the use of one's name as a trade mark, under trade mark provisions. Cabanellas, "The Right of Publicity under Argentine Law" (1998) 18 *Loyola of Los Angeles Entertainment Law Journal* 449; in Brazil there is also protection of privacy and image rights as two rights innate to the human being: Nigri and Gandelman, "The Right of Publicity in Brazil" (1998) 18 *Loyola of Los Angeles Entertainment Law Journal* 469.

108 Caenegem, "Different Approaches to the Protection of Celebrities against Unauthorised use of their Image in Advertising in Australia, United States and the Federal Republic of Germany" [1990] E.I.P.R. 452 at 456.

109 As Spain and Portugal modelled their system on the French, this influence has been carried into the legal systems of Central and South America.

- 110 TGI Paris, ord ref. February 27, 1970.
- 111 TGI Paris, 3e ch, February 24, 1976. Look-alikes of the famous singers were used in adverts for the defendant's underwear line with the caption "beware of imitations". The court did find that fans would believe they endorsed the product.
- 112 TGI Paris, December 3, 1975--the impersonation of the famous actor's voice was held to infringe the personality right and to inflict both moral and professional damage. In 1983 the French Advertising Industry recommended consent from celebrities be obtained in such cases.
- 113 TGI Aix en Provence, November 24, 1988.
- 114 This appears to expand earlier cases which accepted that *reputation* rights continued after death.
- 115 Logeais and Schroeder, "The French Right of Image: an Ambiguous Concept Protecting the Human Persona" (1998) 18 *Loyola of Los Angeles Entertainment Law Journal* 511. And see Hauch, "Protecting Private Facts in France: The Warren & Brandeis Tort is Alive and Well and Flourishing in Paris" (1994) 68 *Tullane Law Review* 1219 at 1298, fn.362 who could discern the emergence of a marketable right of publicity "distinguishable" from the non-saleable privacy right.
- 116 *ibid.* at 532.
- 117 See Art.10 ECHR and Loi sur la Liberte de la Presse, July 29, 1881.
- 118 For the defence to apply the parody must be humorous, non-offensive and informative.
- 119 The Italian Civil Code prohibits the unauthorised use of a person's name (Art.6) and image (Art.10) while the Copyright Law 1941 prohibits commercial distribution of portraits (Art.96).
- 120 Pret. Di Roma, April 18, 1984, Italian District Court.
- 121 *Vitti v Doimo SpA* Pret. Di Roma, July 6, 1987, even though there was a disclaimer in the small print.
- 122 Martuccelli, "The Right of Publicity under Italian Civil Law" (1998) 18 *Loyola of Los Angeles Entertainment Law Journal* 543 at 548. Martuccelli believes this right to be transferable, though he accepts that the issue of descendibility is still open.
- 123 It was inevitable that litigants would seek protection beyond the confines of these provisions, given lookalikes are not included in the portrait provisions, while the protection of name looks only to defamation or appropriation through endorsement.
- 124 The Supreme Court (RG) denied the inclusion of a right of personality within para.823 of the BGB or Civil Code (the general foundation of the German law of torts which refers to the specific rights to be protected), the "*Soraya*" case, 1973.
- 125 "Personlichkeitsrecht": "*Schacht-Brief*" case, 1977. There was a draft Act for the Protection of General Rights of Personality in 1959 but this was not adopted.

- 126 "The Human Rights Act 1998 in Comparison with the Protection of Privacy and
Personality in Germany", [1999] *Yearbook of Entertainment and Media Law* 60 at
67.
- 127 BGH [1956] GRUR 427. S.22 KUG does not provide for damages but
compensation may be obtained by relying on para.812 BGB on unjust
enrichment.
- 128 OLG Cologne [1990] N.J.W. 1995.
- 129 Based on the view that to decide otherwise would be to allow unjust enrichment
- 130 The objection was to the sale of merchandise bearing her likeness and to adverts
using a reconstruction of the famous scene from her film "the Blue Angel". See
Badin, [2000] Ent.L.R. 43.
- 131 Vahrenwald, "Photographs and Privacy in Germany" [1995] Ent.L.R. 203 at 212.
- 132 "Personality Rights in US and Germany: A Comparative Analysis" (1999)
19 *Loyola of Los Angeles Entertainment Law Journal* 479 at 520-521; *cf.* the
1929 case brought by a popular footballer, Tull Harder. His image was used
in advertising without consent but he was denied redress on the basis that no
degradation was involved. At this stage the image right was purely dignitary.
- 133 British Columbia (1996), Manitoba (1987), Newfoundland (1990) and
Saskatchewan (1978). It is still not clear whether publicity rights are included,
though the British Columbia law includes protection against the unauthorised use
of name or portrait for advertising.
- 134 In the civil law province, Quebec, the right to one's image was also accepted in
the Quebec Supreme Court decision, *Deschamps v Renault Canada* (1977) 18 C
de D 937 where film footage of celebrities was used without their permission in
the defendant's advertising campaign, mentioned in Collins, n.93 above.
- 135 Wadlow, "The Law of Passing Off" (2nd ed.), p.304; Howell, "Similar factors
to the right of publicity in the United States, Publicity Rights in the Common
Law provinces of Canada" (1998) 18 *Loyola of Los Angeles Entertainment Law
Journal* 487 at 493.
- 136 Also true that in *Krouse* the lack of a common field of activity was stressed in the
discussion of the tort of passing off.
- 137 1973 40 D.L.R. (3d) 15, Ont CA.
- 138 *ibid.* at 19.
- 139 Rather the effect of the advertisement was to associate the defendants' product
with the game of football generally.
- 140 [1939] 1 K.B. 467.
- 141 (1973) 40 D.L.R. (3d) 15 at 27.
- 142 (1977) 80 D.L.R. (3d) 583, Ont HC.
- 143 One witness described it as the best-known water-skiing photograph in the world,
while Athans himself described it as his trademark
- 144 As Wadlow, n.36 above, notes, "the defendants had they really bought the
approval of the plaintiffs could hardly have hidden their light under a bushel
more effectively" (p.296).

- 145 In *Athans* there was even less likelihood of persuading the court that there was
any false endorsement--here the unfair taking was the key issue.
- 146 A similar tort was applied by the Jamaican Supreme Court in *Robert Marley
Foundation v Dino Michelle Ltd*, 1994, unreported see (1996) 55 C.L.J. 56--
the face of the Reggae hero Bob Marley was used without permission on the
defendants' T-shirts. It was held that Bob Marley's goodwill was violated in view
of this commercial appropriation of his image.
- 147 Collins, n.93 above, at 921.
- 148 (1998) 321 D.L.R. (4th) 161.
- 149 *Dowell v Mengen Institute* [1983] 72 C.P.R. 2d 238, Ont HC (videotape of
unemployed men discussing employment).
- 150 (1992) 42 C.P.R. 3d 390 at 401, BC SC.
- 151 Howell, n.36 above, at 501: "if the passing off tort in Canada evolves to
encompass the Australian Hogan test [on which see below] in the area of
character merchandising, the scope and purpose of the tort of appropriation of
personality would need to be considered".
- 152 (1937) 58 C.L.R. 479.
- 153 Gray, "Property in Thin Air" [1991] C.L.J. 252 at 266.
- 154 McTiernan J.
- 155 Dixon J. cited the famous dissent of Brandies in *INS v Associated Press* 248 U.S.
215, rejecting a misappropriation action.
- 156 (1984) 156 C.L.R. 414, given that the existence of an action for unfair
competition would be "inconsistent with the established limits of the traditional
and statutory causes of action which are available to a trader in respect of damage
caused or threatened by a competitor".
- 157 (2000) 169 A.L.R. 677.
- 158 This rejection of misappropriation as a cause of action has been upheld in recent
"mainstream" passing off cases such as *McIlhenny Co v Blue Yonder Holdings
Pty Ltd* 149 A.L.R. 496, Fed Ct Aus. Here the choice of the name Tabasco by
the defendant for their design service was clearly an attempt to promote their
service as "hot" and worthwhile. The plaintiff's argument was that the tort of
passing off should be applied to prevent this misappropriation of their "valuable
property" in the name Tabasco. This was held to be a circular argument, noting
"the appropriation, if there is one, is wrongful only if a rule or principle of law
forbids it".
- 159 Interestingly, in *Moorgate* (1984) 156 C.L.R. 414 at 445 Deane J. rejected a
tort of unfair competition but noted that traders could look to adapt the tort of
passing off, to meet "new situations and circumstances" and exemplified passing off
developed "to meet new circumstances involving the deceptive or confusing use
of name or other indicia to persuade purchasers or customers to believe that the
goods or services have an association, quality or endorsement".
- 160 [1969] R.P.C. 218. (1959) *Sydney Law Review* 525.

- 161 The court rejected the need to show a "common field of activity", though on the
 162 facts this did exist.
 163 [1969] R.P.C. 218 at 244.
 164 Evatt C.J., *ibid.* at 236.
 165 Wadlow, n.36 above, p.297.
 166 *ibid.* p.304, fn.45.
 83 A.L.R. 187. The defendant's shop evoked the style of the character devised by
 Paul Hogan (by using the name Dundee and the image of a koala bear, dressed
 like the Crocodile Dundee character).
 167 10 I.P.R. 289 where the well-known Australian television presenter, Sue
 Smith, complained of an advertisement showing a young woman only slightly
 resembling her watching television with the slogan "Sue Smith just took control
 of her video recorder".
 168 (1989) 14 I.P.R. 398.
 169 A tort of privacy has yet to be accepted.
 170 (1986) 11 F.C.R. 233 and see *Honey v Australian Airlines* 11 I.P.R. 264.
 171 "A corporation shall not in trade or commerce engage in conduct that is
 misleading or deceptive or is likely to mislead or deceive." There is no need
 to prove damage or the existence of a reputation. Although this is part of a
 consumer protection statute, the vast majority of actions are brought by traders
 rather than consumers.
 172 *Mark Foy's Pty Ltd v TVSN (Pacific) Ltd* (2000) 49 I.P.R. 303.
 173 And see *Hutchence v South Sea Bubble Co Pty* (1986) 6 I.P.R. 544 where the
 unauthorised merchandising of T-shirts with the pop group INXS's design
 infringed s.53. Similar actions have been successfully brought by Bruce
 Springsteen and Dire Straits.
 174 Parker J. in *Burberrys v JC Cording & Co* (1909) 26 R.P.C. 693 at 701: "apart
 from the law as to trade marks, no one can claim monopoly rights in the use
 of a word or name". *Du Boulay v Du Boulay* (1869) 2 L.R. Pc 430: "we do not
 recognise the absolute right of a person to a particular name ... whatever cause
 of annoyance it may be". Laddie J. in *Elvis Presley* [1997] R.P.C. 543: "there is
 nothing akin to copyright in a name". There is the doctrine of *Routh v Webster*
 which can be used to prevent the use of a name where that might expose the
 claimant to liability.
 175 (1899) 80 L.T. 556. However there may be professional harm where *e.g.* there is
 an association with dangerous or defective products. This seems to be accepted
 in *Clark v Freeman* (1848) 11 Beav. 112 where Lord Langdale M.R. expressly
 left open the possibility of an injunction after the case had been put to the
 jury. Although in *Maxwell v Hogg* (1867) L.R. 2 Ch.App. 307 Cairns L.J.
 asserted that in *Clark* the doctor "had a property in his own name", this is to be
 understood in the context of a discussion as to the need for goodwill attached
 to the name. Laddie J. in *Irvine v Talksport* [2002] F.S.R. 943 at 950 noted that

- no misrepresentation was made out in an era when physicians were seen as gentlemen who would not lower themselves to become involved in trade.
- 176 (1906) 22 T.L.R. 532.
- 177 See early L.Q.R. articles such as Winfield, "Privacy" (1931) 47 L.Q.R. 23, supporting the Warren and Brandeis approach.
- 178 See Duxbury, *Jurists and Judges: an Essay on Influence* (2001).
- 179 *Form and Substance in Anglo-American Law: A Comparative Study of Legal Reasoning, Legal Theory and Legal Institutions* (Clarendon Press, Oxford), p.403.
- 180 [1991] F.S.R. 62. Wadlow, n.36 above, believes passing off could have been found, provided the Court of Appeal had been willing to take a liberal view of what constitutes trading interests--and therefore goodwill. Though it was held not to be passing off because the plaintiff was not a trader, the Court of Appeal did find malicious falsehood in the allegation that consent to the article had been given
- 181 Note the discussion of the action for breach of confidence, below. The classic cases on private secrets, such as *Prince Albert v Strange* (1849) 18 L.J.Ch. 120 was not cited in *Kaye*, given it was not brought as an action for confidence. It was of course from such cases that Warren and Brandeis formulated their privacy right.
- 182 *Obiter* remarks in *Wainwright v Home Office* [2001] EWCA Civ 2081, [2002] 3 W.L.R. 405, cited by Lindsay J. in *Douglas v Hello!* who was pouring cold water on Sedley L.J.'s recognition of a right to personal privacy in the same case.
- 183 [2003] UKHL 53, [2003] 3 W.L.R. 1137. He interpreted Sedley L.J. in *Hello!* as merely asserting that the action for breach of confidence had now reached a point at which a confidential relationship had become unnecessary for liability.
- 184 Cornish, "Character Merchandising in the United Kingdom: Rights in Fictional Characters" (1978) A.I.P.L. 492 at 494.
- 185 (1848) 11 Beav. 112.
- 186 [1930] 1 K.B. 467 at 477 (in the Court of Appeal, which found no innuendo but was overturned by the House of Lords).
- 187 It is interesting to note that similar sentiments can be found in early American cases where privacy was sought to be used to gain publicity protection, e.g. *O'Brien v Pabst Sales Co* 124 F.2d 167 (5th Cir. 1941)--football player denied injunction against use of picture in beer advert on grounds *inter alia* that by deliberately seeking wide publicity he had "ceased to be a private person".
- 188 Madow, "Private Ownership of Public Image--Popular Culture and Publicity Rights" (1993) 81 *California Law Review* 125 at 154, fn.127.
- 189 To show that the other person "[i]s invading some legally recognised right" *per* Laddie J. in *Elvis Presley* [1997] R.P.C. 543 at 547.
- 190 *Tolley v Fry* [1931] A.C. 33. Interestingly, defamation was successfully used in the Australian case, *Ettinghausen v Australian Consolidated Press* [1991] 23 N.S.W.L.R. 443. It should be remembered that this tort can only protect during

- the claimant's life. In *Charleson v Newsgroup Newspapers* [1994] 2 A.C. 64 the faces of two well-known soap opera stars were superimposed onto the bodies of a couple engaged in a sexual act, in order to criticise a pornographic computer game. There was no libel as there was no impression given that these actors were actually part of the game.
- 191 (1888) 40 Ch.D. 345.
- 192 In *Rickless v United Artists* [1988] 1 Q.B. 40 out-takes from Peter Sellers' previous Pink Panther films were used without authority in the *Trail of the Pink Panther*. Bingham L.J. compared the defendants' actions to that of a defendant inducing the plaintiff's ex-employee to breach a restrictive covenant by working for him. There were also unlawful acts--statutory torts under the Dramatic and Musical Performers Protection Acts--aimed at interfering with the plaintiff's trade.
- 193 Though the Court of Appeal in *Rickless v United Artists Corp* also appeared to accept a tort of "inconsistent transactions" it is submitted that the better view of this decision is that it is based on inducing breach. It is submitted that there is no liability simply for interfering with an exclusive deal.
- 194 The action for false attribution of authorship might also be useful.
- 195 Though note the *obiter* views of Aldous L.J. in *Arsenal plc v Matthew Read* (No.2) [2003] R.P.C. 39, discussed below.
- 196 In *Merchandising Corp of America v Harpbond* [1983] F.S.R. 32, the unauthorised reproduction of a pop star's image with his new stage look was judged by Walton J. to be "nothing like" passing off as there was no evidence of misrepresentation or damage to goodwill.
- 197 Said to have emerged from the decision in *McCulloch v May* (1947) 65 R.P.C. 58. In *Lyngstad v Annabas* [1977] F.S.R. 62 (the Abba case), Oliver J. rebutted the Henderson criticism of *McCulloch v May* by noting that common field of activity was not meant as a term of art but as a concept to underline the need for a real possibility of confusion. And Millett L.J. noted in *Harrods v Harroldian School* [1996] R.P.C. 697 at 714-715 that absence of a common field of activity might make the proof of likely confusion difficult. Strangely, the court required a common field of activity in the Australian case, *Wickham v Association of Pool Builders* [1988] 12 I.P.R. 567. This decision seems out of line with contemporaneous and subsequent case law.
- 198 In *Sim v Heinz* [1959] R.P.C. 75 the plaintiff, an internationally recognised actor, objected to what he believed to be a soundalike used in the defendants' radio adverts. Though the claim was in passing off and malicious falsehood as well as libel, the court focused on libel and applied the normal rule that interlocutory injunctions would not be granted. The allegation in passing off--that the plaintiff's goodwill in his performance was damaged--was regarded by Hodson L.J. as "a novel form" of the tort, clearly doubting its validity (though in the lower court, McNair J. had been more sympathetic).
- 199 (1947) 65 R.P.C. 58.

- 200 They followed the lead taken in Australia: *Children's Television Workshop Inc v Woolworth (NSW) Ltd* [1981] R.P.C. 187; *Fido Dido Inc v Venture Stores (Retailers) Pty Ltd* 16 I.P.R. 365.
- 201 [1977] F.S.R. 62. It is interesting to note the similar date to the decision in *Krouse*. Oliver J. referred to the criticism of *McCulloch* in *Henderson* but thought it might be based on a misconception.
- 202 [1977] F.S.R. 1.
- 203 [1984] R.P.C. 501.
- 204 Wadlow, *The Law of Passing Off* (2nd ed.), p.313.
- 205 [1997] R.P.C. 543, Laddie J; [1999] R.P.C. 567, CA. Though essentially a case on the Trade Marks Act 1938 and the issue of whether the name Elvis Presley was sufficiently distinctive to function as a trade mark, the discussion is still relevant to the 1994 Act and clearly also includes an analysis of the tort of passing off and its application in this area.
- 206 [1997] R.P.C. 543 at 547. "[They] have no right to prevent the reproduction or exploitation of any of the myriad of photos and drawings in which [they] do not own the copyright simply by reason of the fact that they contain or depict a likeness of [the celebrity]." Here a market trader who traded a range of Elvis Presley memorabilia under the registered name "Elvisly Yours" successfully opposed the registration by Elvis Presley Enterprises of various Elvis Presley trade marks.
- 207 He suggested this may arise if the word "official" is used.
- 208 Though he accepted a defence of "fair dealing" such as the publication of portraits or biographical information.
- 209 He also noted it had been rejected by the Whitford Committee (to fill the gap between copyright and passing off).
- 210 In *Mirage Studios v Counter Feat Clothing Co* [1991] F.S.R. 145. Here the defendants tried to cash in on the plaintiffs' successful cartoon characters the Teenage Mutant Ninja Turtles by producing their own humanoid turtle characters and licensing their use to various clothing manufacturers. Though passing off was held arguable on the facts, the case also involved an breach of copyright.
- 211 Cornish, *Intellectual Property* (5th ed., 2003), p.642.
- 212 Unreported, 1997, ChD. See (1997) 8 Ent.L.R. E94-95.
- 213 Lightman J. noted that the pop group had advised on a number of their merchandising products that they were "official".
- 214 An evil which lies behind the Canadian acceptance of the appropriation wrong and the Australian developments in passing off law. Indeed the acceptance of misappropriation as a key to common law development can also be detected in recent developments in the action for breach of commercial confidence, see n.35 below.
- 215 Terry, "Image Filching and Passing Off in Australia: Misrepresentation or Misappropriation" [1990] E.I.P.R. 119 at 220: "the recognition that the misrepresentation which can support a passing off action can be as to such

nebulous concepts as an "association" or a "connection" provides the courts with a great deal of flexibility".

216 *Erven Warnink BV v J Townend & Sons (Hull) Ltd* [1979] A.C. 731.

217 And indeed as a concept lies behind the changes to registered trade mark law, now contained in s.10(3) TMA 1994.

218 [2002] F.S.R. 943.

219 The defendant had obtained the rights to cover the F1 Grand Prix World Championship. The photograph had been legitimately obtained from a photo agency, so no question of copyright infringement arose.

220 [2003] F.S.R. 619. The defendant appealed (unsuccessfully) on the issue of liability arguing *inter alia* that the use of Irvine's image was analogous to that of a celebrity photograph on a magazine cover; the claimant (successfully) on the assessment of damages.

221 The celebrity image on a T-shirt, for example.

222 Describing it as "discredited", [2002] F.S.R. 943 at 958.

223 Indeed Laddie J. cited cases to this effect such as *Harrods v Harrodian School* [1996] R.P.C. 697; *Annabel's v G Schock* [1972] R.P.C. 838.

224 [2002] F.S.R. 943 at 968.

225 *ibid.* at 955.

226 *ibid.* at 969.

227 That it was implied that the station had been "endorsed, recommended or approved" by Irvine. One witness close to Irvine claimed he believed there was some commercial link as a result of the photograph but he did admit in his evidence that he "policed this sort of thing" (at 965) and accepted that the photograph was obviously tampered with.

228 So rather than customer base we are told of the wide press coverage and public exposure of Irvine at the height of his fame.

229 The defendant argued in *Irvine* [2003] F.S.R. 619 that the claimant was trying to enforce the broad and novel right rejected by Simon Brown L.J. in *Elvis Presley* (see earlier in text).

230 [2002] F.S.R. 943 at 984: "the law of passing off is not designed to protect a trader from *fair* competition" (emphasis added).

231 The decision also echoes the liberal view of the tort in both *Hogan* cases (see earlier in text). Laddie J. also cites the Australian decisions, *Campomar Sociedad, Limitada v Nike International Ltd* (2000) 46 I.P.R. 481 and *Moorgate Tobacco Co v Philip Morris (No.2)* (1984) 3 I.P.R. 545 in which Deane J. approved of "the adaptation of the traditional doctrine of passing off to meet new circumstances involving the deceptive or confusing use of names ... or other indicia to persuade purchasers or customers to believe that the goods or services have an association, quality or endorsement which belongs or would belong to goods or services of, or associate with, another or others".

232 [2002] F.S.R. 943 at 950.

- 233 It is interesting to note that the language of misappropriation is beginning to creep into the two actions which together represent the English law on unfair competition--passing off and breach of confidence. This appears to represent a movement from simply basing these actions on the prevention of real damage towards the use of these actions to prevent the exploitation of a valuable intangible. So in *Shelley Films v Rex Features* [1994] E.M.L.R. 134, *Creation Records v Newsgroup Newspapers* [1997] E.M.L.R. 444 and the *Hello!* litigation, it is not information in an orthodox sense that is being protected, but rather valuable rights in the "exclusive" photographs involved. So in *Hello!* the photography rights were a "commodity", the stars being in the business of "name and likeness". Given the existence of this "valuable trade asset", Lindsay J. felt that the law of confidence should help to preserve its secrecy so that its control (and the eventual publicity) remained with the couple
- 234 *Erven Warnink BV v J Townend & Sons (Hull) Ltd* [1979] A.C. 731. See e.g. Dworkin, "Unfair Competition: Is the Common Law Developing a New Tort?" [1979] E.I.P.R. 241.
- 235 e.g. Laddie J. in *Chocosuisse Union des Fabricants Suisses de Chocolat v Cadbury Ltd* [1997] R.P.C. 117 at 127: "although in the current state of development the common law does not recognise a general right in one trader to complain of damaging dishonest practices committed by his competitors ... "(emphasis added).
- 236 e.g. *Allen & Co v Brown Watson Ltd* [1965] R.P.C. 191 at 194, Pennycuik J.: "one need have no sympathy for the defendants ... because it is abundantly clear [that they did what they did] ... simply in order to cash in on the advertisement and reputation of the plaintiffs' book".
- 237 [1993] F.S.R. 641.
- 238 [1996] R.P.C. 697.
- 239 [1997] F.S.R. 877 at 890.
- 240 [1998] F.S.R. 718.
- 241 *British Telecommunications v One In A Million* [1999] F.S.R. 1, CA.
- 242 *Arsenal plc v Matthew Read (No.2)* [2003] R.P.C. 39, though unnecessary for the appeal, given there was no appeal on passing off but only on the TMA 1994.
- 243 A.G. Jacobs in *Parfums Christian Dior Sa v Evora* [1998] R.P.C. 166 at 180-181.
- 244 [2003] E.T.M.R. 227, ECJ.
- 245 [2003] F.S.R. 28.
- 246 *The Times*, October 31, 2003.
- 247 Marks "having a reputation". Essentially the ECJ has extended the "anti-dilution" protection of such marks so that they are protected both where they are used by the defendant on dissimilar goods/services and similar goods/services. This latter protection was not contained within the literal wording of the Directive.
- 248 This followed the massive growth in the value of brands in the 1990s.
- 249 Art.8: "Everyone has the right to respect for his private and family life, his home and his correspondence".

- 250 "In other words instead of creating a free-standing private law cause of action for breach of Article 8, the courts should further develop the law protecting confidences incrementally and also extend the law of private nuisance", Lester and Pannick, "The Impact of the HRA on Private Law" (2000) 116 L.Q.R. 380.
- 251 [2001] F.S.R. 732.
- 252 Other claims were: infringing copyright (this was not relied upon because at this stage interim injunction relief was sought); malicious falsehood (rejected as the assertion that they were "exclusive photographs" was true); interference with contractual relations (however no evidence that the activities were unlawful under New York law).
- 253 It was felt that because the surreptitious photographs might have been taken by an intruder the action for breach of confidence might not lie--however it is hard to see why this should be the case, particularly as Sedley L.J. himself cites the view of Laws J. in *Hellewell v Chief Constable of Derbyshire* [1995] 1 W.L.R. 804 that a telephoto shot of a private act would involve breach of confidence. In the modern application of this action it is the nature of the information that is important: Fenwick and Phillipson, "Confidence and Privacy: A Re-Examination" [1996] C.L.J. 447.
- 254 The question then became whether they could use privacy as a right to counter the freedom of the press, contained in Art.10 ECHR.
- 255 [1991] F.S.R. 62: he noted that the court adopted counsel's assumption that there was no such right.
- 256 [2001] F.S.R. 732 at 769: he acknowledged a debt to the Warren and Brandeis article.
- 257 *ibid.* at 766.
- 258 *ibid.* at 770. "What a concept of privacy does, however, is accord recognition to the fact that the law has to protect not only those people whose trust has been abused but those who simply find themselves subjected to an unwanted intrusion into their personal lives. The law no longer needs to construct an artificial relationship of confidentiality between intruder and victim ..."
- 259 *ibid.* at 781. Brooke L.J., despite a lengthy review of the law, decided he was not obliged to solve this point, at 762.
- 260 Which makes the point very clearly: the courts must distinguish between privacy and publicity issues. See later in text.
- 261 [2001] EWCA Civ 2081, [2002] 3 W.L.R. 405. The case went on appeal to the House of Lords [2003] UKHL 53, [2003] 3 W.L.R. 1137 where Lord Hoffmann was similarly dismissive of a general privacy tort.
- 262 [2004] UKHL 22, [2004] 2 W.L.R. 1232. Lord Nicholls referred to Phillipson's "valuable" article, "Transforming Breach of Confidence? Towards a Common Law Right of Privacy under the Human Rights Act" (2003) 66 M.L.R. 726.
- 263 The court also stressed that the values contained in Arts 8 (respect for private and family life) and 10 (freedom of expression) ECHR are part of the cause of action for breach of confidence (as was asserted by Lord Woolf in *A v B plc* [2002])

- EWCA Civ 337, [2003] Q.B. 195 at 202). This calls for a more explicit analysis of competing considerations than that which appears in the traditional analysis of the cause of action in *Coco v Clark* [1969] R.P.C. 41.
- 264 Madow, "Private Ownership of Public Image--Popular Culture and Publicity Rights" (1993) 81 *California Law Review* 125 at 136.
- 265 *ibid.* at 133.
- 266 D. Lange, "Recognising the Public Domain" (1981) 44 *Law and Contemporary Problems* 147 at 157.
- 267 Note the earlier criticism of such an approach by Cohen, "Transcendental Nonsense" (1935) 35 *Columbia Law Review* 809 at 815.
- 268 McCarthy believes the burden is on those who dispute the legitimacy of the publicity right but of course he was one of those commentators who shaped the right in America, see above.
- 269 John Locke, *Second Treatise of Government*.
- 270 Terry, "Unfair Competition and the Misappropriation of a Competitors Trade Values" (1988) 51 M.L.R. 296. Libling, "The Concept of Property: Property in Intangibles" (1978) 94 L.Q.R. 103, in an article noted by Terry, gives the following definition: "any expenditure of mental or physical effort, as a result of which there is created an entity ... vests in the person who brought that entity into being a property right to commercial exploitation of that right".
- 271 Catanzariti notes that publicity rights protect investment "in creating and maintaining a carefully manicured public image, an investment of time, labour, skill and cash. This includes the cost of agents and spin doctors and personal trainers and make-up artists and plastic surgeons and making sure some stories never get into the press", Catanzariti, "Swimmers, Surfers and Sue Smith--Personality Rights in Australia" (2002) 13 Ent.L.R. 135.
- 272 849 F.2d 460 at 462 (9th Cir. 1988).
- 273 The most commonly asserted judicial rationale in the US according to Grady, "A Positive Economic Theory of the Right of Publicity" (1994) 1 *UCLA Entertainment Law Review* 97 at 109.
- 274 McCarthy, "Public, Personal and Private Property: the Commercialization of Human Identity" (1989) 79 T.M.R. 681 at 685: "the [rationale] is the simplest and most obvious. It is the natural right of property justification ... The existence of a legal right to control identity would seem to be essential to any civilised society."
- 275 Vaver, "The Protection of Character Merchandising--A Survey of Some Common Law Jurisdictions" [1978] 9 I.I.C. 541: "reflects the habits of fair commercial men and public expectations, without any recognisable public interest weighing against it".
- 276 202 F.2d 866 at 868.
- 277 e.g. *Zacchini v Scripps-Howard Broadcasting* 433 U.S. 562 (1977) and see Callmann, "He Who Reaps Where He Has Not Sown: Unjust Enrichment in the Law of Unfair Competition" (1942) 55 *Harvard Law Review* 595.

- 278 Nimmer, "The Right of Publicity" 19 *Law and Contemporary Problems* 203 at 216.
- 279 *Bi-Rite Enterprises Inc v Button Master* 555 F.Supp 1188, 1198 (S.D.N.Y 1983); in *Onassis v Christian Dior* 472 NYS (2d) 254 (SC 1984) the court declared it would not allow a "free ride".
- 280 248 U.S. 215 at 241.
- 281 Though Warren and Brandeis invoked the principle of "inviolate personality" to justify their new tort.
- 282 Hauch, "Protecting Private Facts in France: The Warren & Brandeis Tort is Alive and Well and Flourishing in Paris" (1994) 68 *Tullane Law Review* 1219 at 1223. She concludes that the privacy and image rights "work in tandem to give the French a broad protection of their 'personality'".
- 283 See in particular Hegel, *Philosophy of Right*.
- 284 Justin Hughes, "The Philosophy of Intellectual Property" in Moore, ed., *Intellectual Property: Moral, Legal and International Dilemmas* (1997), p.141. Waldron, *The Right to Private Property* (1988), p.353: "Hegel argues that individuals need private property in order to sustain and develop the abilities and self-conceptions definitive of their status as persons".
- 285 Radin, "Property and Personhood" (1982) 34 *Stanford Law Review* 957.
- 286 David E. Shipley, "Publicity Never Dies: It Just Fades Away" (1981) 66 *Cornell Law Review* 673 at 681.
- 287 Felcher and Rubin, "The Descendibility of the Right of Publicity: is there Commercial Life after Death?" (1980) 89 *Yale Law Journal* 1125 at 1128.
- 288 433 U.S. 562 (1977).
- 289 n.66 above, at 191.
- 290 *ibid.* at 189. He cites as an example of this relational phenomenon the celebrity status "conferred" on Einstein on his visit to America after the First World War. After initial press hostility "the mainstream press *selected* Einstein for celebrity and it chose him in part because he served the media's own institutional interests: he granted interviews, spoke quotably, had 'the right appearance'. No doubt the media would have looked elsewhere had Einstein been dour, taciturn and unphotogenic."
- 291 Spence, "Passing off and Misappropriation of Valuable Intangibles" (1996) 112 L.Q.R. 472 at 479. He continues: "His value for product endorsement was at least in part 'created' by the many thousands of people who saw and enjoyed the film ... in all these circumstances it is clearly difficult to determine who 'created' the product endorsement value of the Dundee character".
- 292 Brandeis in his dissenting judgment in the *INS* case felt that certain valuable intangibles should be "free as the air to common use".
- 293 Madow, n.66 above, at 137.
- 294 971 F.2d 1395 (9th Cir. 1992).
- 295 Caenegem, "Different Approaches to the Protection of Celebrities against Unauthorised use of their Image in Advertising in Australia, United States and

the Federal Republic of Germany" [1990] E.I.P.R. 452 at 457 notes how the personality right in German law traditionally requires something more "[Arts 1 and 2] require that an element of defamation or harm to the reputation be present or that it be proved that no other interests outweigh the interest that the celebrity has in protecting the commercial value of his or her image".

296 n.66 above, at 181, fn.271.

297 433 U.S. 562 (1977).

298 And why does not the same rationale apply to transformative use of the celebrity: should this not be encouraged as a stimulus to creation?

299 And of course celebrities can, by the use of contract, benefit from "official" endorsement.

300 Frazer, "Appropriation of Personality--a New Tort" (1983) 99 L.Q.R. 281 at 303.

301 Goodenough, "Rethorising Privacy and Publicity" [1997] I.P.Q. 37 at 60. He does note that one possible reason for allocating identity rights to the celebrity himself involves transactional efficiency.

302 Gaines, *Contested Cultures: The Image, The Voice and the Law* (1991); Lange, "Recognizing the Public Domain" (1981) 44 *Law and Contemporary Problems* 147 and Felcher and Rubin, "Privacy, Publicity and the Portrayal of Real People by the Media" (1979) 88 *Yale Law Journal* 1577.

303 *Comedy III Productions Inc v New Line Cinema* (2000) 53 U.S.P.Q. 2d 1858, Calif Sup Ct, the Three Stooges case.

304 For Madow, "Private Ownership of Public Image--Popular Culture and Publicity Rights" (1993) 81 *California Law Review* 125 at 138, "publicity rights facilitate private censorship of popular culture". Note the dissenting judgement of Judge Kozinski in *Vanna White* 989 F.2d 1512: "[over-protecting intellectual property] stifles the very creative forces it's supposed to nurture".

305 n.6 above.

306 See Stuart Hall, ed., *Culture, Media, Language, Encoding/Decoding* (1980), p.128.

307 "Character Merchandising in Australia: Its Benefits and Burdens" (1990) 1 *Intellectual Property Journal* 191.

308 Sen, "Fluency of the Flesh: Perils of An Expanding Right of Publicity" (1995) 59 *Albany Law Review* 739 at 742-743.

309 868 F. Supp 1266 (N.D. Okla, 1994).

310 *Cardtoons LC v Major League Baseball Players Association* 868 F.Supp 1266 (N.D. Okla, 1994), following the Supreme Court decision in *Campbell v Acuff-Rose Music Inc* 114 S.Ct 1164 (1994), applying the fair use defence in copyright law to a parody of the plaintiff's work. However the court did suggest that parodic use in advertising another unrelated product may not be within the defence. In the case itself the parodies of famous baseball players were contained in trading cards, not as such advertising a separate product.

311 n.8 above, at 239.

- 312 Paul Stevens of Olswang, reported in *The Times*, October 28, 2003. In the same article the solicitor for Ian Botham in his litigation against Guinness (n.54 above) is quoted: "I think it is an area of law we have got to work on and create". *The Times*, November 27, 2003 reported an out-of-court settlement of £70,000 based on an allegation of passing off between the artist Andy Goldsworthy and Habitat. Goldsworthy alleged that Habitat had stolen the image of one of his most famous works--Midsummer Snowballs--in their advertising. He complained that the public would believe he "endorsed" the Habitat furniture as a result. He was reported to have accused them of "stealing his art for commercial gain".
- 313 Murumba, *Commercial Exploitation of Personality* (1986), p.47.
- 314 *i.e.* those with an established goodwill.
- 315 This argument is developed more fully in Carty, "Dilution and Passing Off: Cause for Concern" (1996) 112 L.Q.R. 632.
- 316 Thus the apparent endorsement must involve customer confusion as to the advice/testimonial quality of the association.
- 317 "He must have been paid for that appearance". This was the circular argument in Krouse: he should be paid because some assumed he had been paid.
- 318 Pincus J. was aware of this in his wide application in *Hogan v Koala Dundee* (1988) A.T.P.R. 40 at 49: "unlike a representation as to the origin or quality of goods, use of mere images in advertising, although presumably effective in generating sales, does not necessarily do so by creating ... any specific conclusions in the minds of the buying public". So he accepted that the image may work by creating happy or memorable association, giving the product a "rub-off" associated with the personality. [check s10(3)]
- 319 Caenegem, "Different Approaches to the Protection of Celebrities against Unauthorised use of their Image in Advertising in Australia, United States and the Federal Republic of Germany" [1990] E.I.P.R. 452: "the term to 'endorse' a product is in truth too narrow to employ here because it suggests an active element which is not always present ... maybe 'image advertising' would be a more appropriate term".
- 320 Defined by Jaffey, "Merchandising and the Law of Trade Marks" [1998] I.P.Q. 240 as "merely to make an association with the celebrity".
- 321 [1981] R.P.C. 429.
- 322 *The Shorter Oxford English Dictionary*.
- 323 Unreported, 1997, Ch.D. See (1997) 8 Ent.L.R. E94-95.
- 324 [1977] F.S.R. 1.
- 325 (1931) 48 R.P.C. 565. The misrepresentation was that his medicines had been made up in accordance with analyses published by the British Medical Association.
- 326 [2002] F.S.R. 943 at 948.
- 327 *ibid.* at 968--and he noted that even if it had obviously been doctored it would have some impact--but is impact the same as endorsement?
- 328 Welkowitz, "Trade Marks and Dilution" (1991) 44 V. & L.R. 531.

- 329 [2002] F.S.R. 943 at 955.
- 330 *ibid.* at 968.
- 331 Right at the end of his judgment (at 969) Laddie J. noted that he had invited counsel to address him on the ECHR implications if he had concluded passing off had not developed sufficiently to cover false endorsement. He had been addressed on the effect of Art.8 and Art.1 of Protocol 1 in light of the ECHR judgment in *Van Marle v Netherlands* (1986) 8 E.H.R.R. 483--holding that the right to practise a profession was akin to a private right of property and fell within Art.1 of Protocol 1.
- 332 Arguably echoing the sentiment of Judge Franks in *Haelen* 202 F.2d 866, who noted that "for many sportsmen ... income received from endorsing a variety of products and services represents a very substantial part of their total income".
- 333 Indeed we have already seen a worrying tendency to find "connection" misrepresentations (a concept clearly related to endorsement misrepresentations) however vague the link may be. Simply to believe that the claimant's and defendant's businesses are somehow "mixed up" may be sufficient for some judges to find a connection misrepresentation. Others, however demand a more definite commercial connection to be conveyed. Interestingly both these interpretations of "connection" are present in *Harrods v Harrodian School* (1996) R.P.C. 697, CA.
- 334 See earlier in text.
- 335 n.17 above, at 98.
- 336 n.8 above, at 127, fn.11.
- 337 Such as the torts of malicious falsehood, defamation and the various economic torts. Where "personal data" is involved in the promotion there may also be protection under the data protection laws.
- 338 And controls should be based on advertising industry regulation, as they are at present. Cornish, *Intellectual Property* (5th ed., 2003): "this practical approach avoids the excesses that may follow from conferring a private property right in name, appearance and voice" (p.643).